

The Hazardous and other Wastes (Management and Transboundary Movement) Rules, 2016

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Union of India - Act

The Hazardous and other Wastes (Management and Transboundary Movement) Rules, 2016

UNION OF INDIA

India

The Hazardous and other Wastes (Management and Transboundary Movement) Rules, 2016

Rule

THE-HAZARDOUS-AND-OTHER-WASTES-MANAGEMENT-AND-TRANSBOUNDARY-MOVEMENT-RULES-2016 of 2016

Published on 4 April 2016

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The Hazardous and other Wastes (Management and Transboundary Movement) Rules, 2016

Published vide Notification No. G.S.R. 395(E), dated 4th April, 2016

Last Updated 11th March, 2019

Ministry of Environment, Forest and Climate Change

G.S.R. 395(E). - Whereas the draft rules, namely the Hazardous and other Wastes (Management and Transboundary Movement) Rules, 2015, were published by the Government of India in the Ministry of Environment, Forest and Climate Change vide number G.S.R. 582(E), dated the 24th July, 2015 in the Gazette of India, Extraordinary Part II, section 3,

sub-section (ii) inviting objections and suggestions from all persons likely to be affected thereby, before the expiry of the period of sixty days from the date on which copies of the Gazette containing the said notification were made available to the public;

And Whereas the copies of the said Gazette containing the said notification were made available to the public on the 24th day of July, 2015;

And Whereas the objections and suggestions received within the specified period from the public in respect of the said draft rules have been duly considered by the Central Government;

Now, Therefore, in exercise of the powers conferred by sections 6, 8 and 25 of the Environment (Protection) Act, 1986 (29 of 1986

), and in supersession of the Hazardous Wastes (Management, Handling and Transboundary Movement) Rules, 2008, except as respects things done or omitted to be done before such supersession, the Central Government hereby makes the following rules, namely:-

Chapter I

Preliminary

1.

Short title and commencement.

(1)

These rules may be called the Hazardous and Other Wastes (Management and Transboundary Movement) Rules, 2016.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Application.

- These rules shall apply to the management of hazardous and other wastes as specified in the Schedules to these rules but shall not apply to -

(a)

waste-water and exhaust gases as covered under the provisions of the Water (Prevention and Control of Pollution) Act, 1974 (

6 of 1974

) and the Air (Prevention and Control of Pollution) Act, 1981 (

14 of 1981

) and the rules made thereunder and as amended from time to time;

(b)

wastes arising out of the operation from ships beyond five kilometres of the relevant baseline as covered under the provisions of the Merchant Shipping Act, 1958 (

44 of 1958

) and the rules made thereunder and as amended from time to time;

(c)

radio-active wastes as covered under the provisions of the Atomic Energy Act, 1962 (

33 of 1962

) and the rules made thereunder and as amended from time to time;

(d)

bio-medical wastes covered under the Bio-Medical Wastes (Management and Handling) Rules, 1998 made under the Act and as amended from time to time; and

(e)

wastes covered under the Municipal Solid Wastes (Management and Handling) Rules, 2000 made under the Act and as amended from time to time.

3.

Definitions.

(1)

In these rules, unless the context otherwise requires,-

1. "Act" means the Environment (Protection) Act, 1986 (29 of 1986);

2. "actual user" means an occupier who procures and processes hazardous and other waste for reuse, recycling, recovery, pre-processing, utilisation including co-processing;

3. "authorisation" means permission for generation, handling, collection, reception, treatment, transport, storage, reuse, recycling, recovery, pre-processing, utilisation including co-processing and disposal of hazardous wastes granted under sub-rule (2) of rule 6;

4.

"Basel Convention" means the United Nations Environment Programme Convention on the Control of Transboundary Movement of Hazardous Wastes and their Disposal;

5.

"captive treatment, storage and disposal facility" means a facility developed within the premises of an occupier for treatment, storage and disposal of wastes generated during manufacture, processing, treatment, package, storage, transportation, use, collection, destruction, conversion, offering for sale, transfer or the like of hazardous and other wastes;

6.

"Central Pollution Control Board" means the Central Pollution Control Board constituted under subsection (1) of section 3 of the Water (Prevention and Control of Pollution) Act, 1974 (6 of 1974);

7.

"common treatment, storage and disposal facility" means a common facility identified and established individually or jointly or severally by the State Government, occupier, operator of a facility or any association of occupiers that shall be used as common facility by multiple occupiers or actual users for treatment, storage and disposal of the hazardous and other wastes;

8.

"co-processing" means the use of waste materials in manufacturing processes for the purpose of energy or resource recovery or both and resultant reduction in the use of conventional fuels or raw materials or both through substitution;

9.

"critical care medical equipment" means life saving equipment and includes such equipment as specified by the Ministry of Health and Family Welfare from time to time;

10.

"disposal" means any operation which does not lead to reuse, recycling, recovery, utilisation including coprocessing and includes physico-chemical treatment, biological treatment, incineration and disposal in secured landfill;

11.

"export", with its grammatical variations and cognate expressions, means taking out of India to a place outside India;

12.

"exporter" means any person or occupier under the jurisdiction of the exporting country who exports hazardous or other wastes, including the country which exports hazardous or other waste;

13.

"environmentally sound management of hazardous and other wastes" means taking all steps required to ensure that the hazardous and other wastes are managed in a manner which shall protect health and the environment against the adverse effects which may result from such waste;

14.

"environmentally sound technologies" means any technology approved by the Central Government from time to time;

15.

"facility" means any establishment wherein the processes incidental to the generation, handling, collection, reception, treatment, storage, reuse, recycling, recovery, pre-processing, co-processing, utilisation and disposal of hazardous and, or, other wastes are carried out;

16.

"Form" means a form appended to these rules;

17.

"hazardous waste" means any waste which by reason of characteristics such as physical, chemical, biological, reactive, toxic, flammable, explosive or corrosive, causes danger or is likely to cause danger to health or environment, whether alone or in contact with other wastes or substances, and shall include -

(i)

waste specified under column (3) of Schedule I;

(ii)

waste having equal to or more than the concentration limits specified for the constituents in class A and class B of Schedule II or any of the characteristics as specified in class C of Schedule II; and

(iii)

wastes specified in Part A of Schedule III in respect of import or export of such wastes or the wastes not specified in Part A but exhibit hazardous characteristics specified in Part C of Schedule III;

18.

"import", with its grammatical variations and cognate expressions, means bringing into India from a place outside India;

19.

"importer" mean any person or occupier who imports hazardous or other waste;

20.

"manifest" means transporting document prepared and signed by the sender authorised in accordance with the provisions of these rules;

21.

"occupier" in relation to any factory or premises, means a person who has, control over the affairs of the factory or the premises and includes in relation to any hazardous and other wastes, the person in possession of the hazardous or other waste;

22.

"operator of disposal facility" means a person who owns or operates a facility for collection, reception, treatment, storage and disposal of hazardous and other wastes;

23.

"other wastes" means wastes specified in Part B and Part D of Schedule III for import or export and includes all such waste generated indigenously within the country;

24.

"pre-processing" means the treatment of waste to make it suitable for co-processing or recycling or for any further processing;

25.

"recycling" means reclamation and processing of hazardous or other wastes in an environmentally sound manner for the originally intended purpose or for other purposes;

26.

"reuse" means use of hazardous or other waste for the purpose of its original use or other use;

27.

"recovery" means any operation or activity wherein specific materials are recovered;

28.

"Schedule" means a Schedule appended to these rules;

29.

"State Government" in relation to a Union territory means, the Administrator thereof appointed under article 239 of the Constitution;

30.

"State Pollution Control Board" means the State Pollution Control Board constituted under section 4 of the Water (Prevention and Control of Pollution) Act, 1974 (6 of 1974

) and includes, in relation to a Union territory, the Pollution Control Committee;

31.

"storage" mean storing any hazardous or other waste for a temporary period, at the end of which such waste is processed or disposed of;

32.

"transboundary movement" means any movement of hazardous or other wastes from an area under the jurisdiction of one country to or through an area under the jurisdiction of another country or to or through an area not under the jurisdiction of any country, provided that at least two countries are involved in the movement;

33.

"transport" means off-site movement of hazardous or other wastes by air, rail, road or water;

34.

"transporter" means a person engaged in the off-site transportation of hazardous or other waste by air, rail, road or water;

35.

"treatment" means a method, technique or process, designed to modify the physical, chemical or biological characteristics or composition of any hazardous or other waste so as to reduce its potential to cause harm;

36.

"used oil" means any oil-

(i)

derived from crude oil or mixtures containing synthetic oil including spent oil, used engine oil, gear oil, hydraulic oil, turbine oil, compressor oil, industrial gear oil, heat transfer oil, transformer oil and their tank bottom sludges; and

(ii)

suitable for reprocessing, if it meets the specification laid down in Part A of Schedule V but does not include waste oil;

37.

"utilisation" means use of hazardous or other waste as a resource;

38.

"waste" means materials that are not products or by-products, for which the generator has no further use for the purposes of production, transformation or consumption.

Explanation. - for the purposes of this clause,

(i)

waste includes the materials that may be generated during, the extraction of raw materials, the processing of raw materials into intermediates and final products, the consumption of final products, and through other human activities and excludes residuals recycled or reused at the place of generation; and

(ii)

by-product means a material that is not intended to be produced but gets produced in the production process of intended product and is used as such;

39.

"waste oil" means any oil which includes spills of crude oil, emulsions, tank bottom sludge and slop oil generated from petroleum refineries, installations or ships and can be used as fuel in furnaces for energy recovery, if it meets the specifications laid down in Part-B of Schedule V either as such or after reprocessing.

40.

["waste collector" means a person who collects hazardous and other wastes on behalf of actual user or operator of disposal facility from the occupier;]

[Inserted by Notification No. G.S.R. 178(E), dated 1.3.2019 (w.e.f. 4.4.2016).]

(2)

Words and expressions used in these rules and not defined but defined in the Act shall have the meanings respectively assigned to them in the Act.

Chapter II

Procedure for Management of Hazardous and other Wastes

4. Responsibilities of the occupier for management of hazardous and other wastes.

(1)

For the management of hazardous and other wastes, an occupier shall follow the following steps, namely:-

(a)

prevention;

(b)

minimization;

(c)

reuse,

(d)

recycling;

(e)

recovery, utilisation including co-processing;

(f)

safe disposal.

(2)

The occupier shall be responsible for safe and environmentally sound management of hazardous and other wastes.

(3)

The hazardous and other wastes generated in the establishment of an occupier shall be sent or sold to an authorised actual user or shall be disposed of in an authorised disposal facility.

(4)

The hazardous and other wastes shall be transported from an occupier's establishment to an authorised actual user or to an authorised disposal facility in accordance with the provisions of these rules.

(5)

The occupier who intends to get its hazardous and other wastes treated and disposed of by the operator of a treatment, storage and disposal facility shall give to the operator of that facility, such specific information as may be needed for safe storage and disposal.

(6)

The occupier shall take all the steps while managing hazardous and other wastes to-

(a)

contain contaminants and prevent accidents and limit their consequences on human beings and the environment; and

(b)

provide persons working in the site with appropriate training, equipment and the information necessary to ensure their safety.

5. Responsibilities of State Government for environmentally sound management of hazardous and other wastes.

(1)

Department of Industry in the State or any other government agency authorised in this regard by the State Government, to ensure earmarking or allocation of industrial space or shed for recycling, pre-processing and other utilisation of hazardous or other waste in the existing and upcoming industrial park, estate and industrial clusters;

(2)

Department of Labour in the State or any other government agency authorised in this regard by the State Government shall,-

(a)

ensure recognition and registration of workers involved in recycling, pre-processing and other utilisation activities;

(b)

assist formation of groups of such workers to facilitate setting up such facilities;

(c)

undertake industrial skill development activities for the workers involved in recycling, pre-processing and other utilisation;

(d)

undertake annual monitoring and to ensure safety and health of workers involved in recycling, preprocessing and other utilisation.

(3)

Every State Government may prepare integrated plan for effective implementation of these provisions and to submit annual report to the Ministry of Environment, Forest and Climate Change, in the Central Government.

6. Grant of authorisation for managing hazardous and other wastes.

(1)

Every occupier of the facility who is engaged in handling, generation, collection, storage, packaging, transportation, use, treatment, processing, recycling, recovery, pre-processing, co-processing, utilisation, offering for sale, transfer or disposal of the hazardous and other wastes shall be required to make an application in Form 1 to the State Pollution Control Board and obtain an authorisation from the State Pollution Control Board within a period of sixty days from the date of publication of these rules. Such application for authorisation shall be accompanied with a copy each of the following documents, namely: -

(a)

consent to establish granted by the State Pollution Control Board under the Water (Prevention and Control of Pollution) Act, 1974 (25 of 1974) and the Air (Prevention and Control of Pollution) Act, 1981 (21 of 1981);

(b)

Consent to operate granted by the State Pollution Control Board under the Water (Prevention and Control of Pollution) Act, 1974 (25 of 1974) and/or Air (Prevention and Control of Pollution) Act, 1981, (21 of 1981);

(c)

in case of renewal of authorisation, a self-certified compliance report in respect of effluent, emission standards and the conditions specified in the authorisation for hazardous and other wastes:

Provided that an application for renewal of authorisation may be made three months before the expiry of such authorisation:

Provided further that-

(i)

any person authorised under the provisions of the Hazardous Waste (Management, Handling and Transboundary Movement) Rules, 2008, prior to the date of commencement of these rules, shall not be required to make an application for authorisation till the period of expiry of such authorisation;

(ii)

any person engaged in recycling or reprocessing of the hazardous waste specified in Schedule IV and having registration under the provisions of the Hazardous Waste (Management, Handling and Transboundary Movement) Rules, 2008, shall not be required to make an application for authorisation till the period of expiry of such registration.

(1A)

[An occupier shall not be required obtain an authorisation under this rule, from the State Pollution Control Board, in case the consent to establish or consent to operate, is not required from the State Pollution Control Board or Pollution Control Committee under the Water (Prevention and Control of Pollution) Act, 1974 (25 of 1974) and Air (Prevention and Control of Pollution) Act, 1981 (21 of 1981);

Provided that the hazardous and other wastes generated by the occupier shall be given to the actual user, waste collector or operator of the disposal facility, in accordance with the Central Pollution Control Board guidelines.]

[Inserted by Notification No. G.S.R. 178(E), dated 1.3.2019 (w.e.f. 4.4.2016).]

(2)

On receipt of an application complete in all respects for the authorisation, the State Pollution Control Board may, after such inquiry as it considers necessary, and on being satisfied that the applicant possesses appropriate facilities for collection, storage, packaging, transportation, treatment, processing, use, destruction, recycling, recovery, pre-processing, co-processing, utilisation, offering for sale, transfer or disposal of the hazardous and other waste, as the case may be, and after ensuring technical capabilities and equipment complying with the standard operating procedure or other guidelines specified by the Central Pollution Control Board from time to time and through site inspection, grant within a period of one hundred and twenty days, an authorisation in Form 2 to the applicant, which shall be valid for a period of five years subject to such conditions as may be laid down therein. For commonly recyclable hazardous waste as given in Schedule IV, the guidelines already prepared by the Central Pollution Control Board shall be followed:

Provided that in the case of an application for renewal of authorisation, the State Pollution Control Board may, before granting such authorisation, satisfy itself that there has been no violation of the conditions specified in the authorisation earlier granted by it and same shall be recorded in the inspection report.

(3)

The authorisation granted by the State Pollution Control Board under sub-rule (2) shall be accompanied by a copy of the

field inspection report signed by that Board indicating the adequacy of facilities for collection, storage, packaging, transportation, treatment, processing, use, destruction, recycling, recovery, pre-processing, co-processing, utilisation, offering for sale, transfer or disposal of the hazardous and other wastes and compliance to the guidelines or standard operating procedures specified by the Central Pollution Control Board from time to time.

(4)

The State Pollution Control Board may, for the reasons to be recorded in writing and after giving reasonable opportunity of being heard to the applicant, refuse to grant any authorisation under these rules.

(5)

Every occupier authorised under these rules, shall maintain a record of hazardous and other wastes managed by him in Form 3 and prepare and submit to the State Pollution Control Board, an annual return containing the details specified in Form 4 on or before the 30th day of June following the financial year to which that return relates.

(6)

The State Pollution Control Board shall maintain a register containing particulars of the conditions imposed under these rules for management of hazardous and other wastes and it shall be open for inspection during office hours to any interested or affected person.

(7)

The authorised actual user of hazardous and other wastes shall maintain records of hazardous and other wastes purchased in a passbook issued by the State Pollution Control Board along with the authorisation.

(8)

Handing over of the hazardous and other wastes to the authorised actual user shall be only after making the entry into the passbook of the actual user.

7. Power to suspend or cancel an authorisation.

(1)

The State Pollution Control Board, may, if in its opinion the holder of the authorisation has failed to comply with any of the conditions of the authorisation or with any provisions of the Act or these rules and after giving him a reasonable opportunity of being heard and after recording reasons thereof in writing cancel or suspend the authorisation issued under rule 6 for such period as it considers necessary in the public interest.

(2)

Upon suspension or cancellation of the authorisation, the State Pollution Control Board may give directions to the person whose authorisation has been suspended or cancelled for the safe storage and management of the hazardous and other wastes, and such occupier shall comply with such directions.

8. Storage of hazardous and other wastes.

(1)

The occupiers of facilities may store the hazardous and other wastes for a period not exceeding ninety days and shall maintain a record of sale, transfer, storage, recycling, recovery, pre-processing, co-processing and utilisation of such wastes and make these records available for inspection:

Provided that the State Pollution Control Board may extend the said period of ninety days in following cases, namely:-

(i)

small generators (up to ten tonnes per annum) up to one hundred and eighty days of their annual capacity;

(ii)

actual users and disposal facility operators up to one hundred and eighty days of their annual capacity,

(iii)

occupiers who do not have access to any treatment, storage, disposal facility in the concerned State; or

(iv)

the waste which needs to be specifically stored for development of a process for its recycling, recovery, pre-processing, co-processing or utilisation;

(v)

in any other case, on justifiable grounds up to one hundred and eighty days.

9. Utilisation of hazardous and other wastes.

(1)

The utilisation of hazardous and other wastes as a resource or after pre-processing either for co-processing or for any

other use, including within the premises of the generator (if it is not part of process), shall be carried out only after obtaining authorisation from the State Pollution Control Board in respect of waste on the basis of standard operating procedures or guidelines provided by the Central Pollution Control Board.

(2)

Where standard operating procedures or guidelines are not available for specific utilisation, the approval has to be sought from Central Pollution Control Board which shall be granting approval on the basis of trial runs and thereafter, standard operating procedures or guidelines shall be prepared by Central Pollution Control Board:

Provided, if trial run has been conducted for particular waste with respect to particular utilisation and compliance to the environmental standards has been demonstrated, authorisation may be granted by the State Pollution Control Board with respect to the same waste and utilisation, without need of separate trial run by Central Pollution Control Board and such cases of successful trial run, Central Pollution Control Board shall intimate all the State Pollution Control Board regarding the same.

(3)

No trial runs shall be required for co-processing of waste in cement plants for which guidelines by the Central Pollution Control Board are already available; however, the actual users shall ensure compliance to the standards notified under the Environment (Protection) Act, 1986 (29 of 1986), for cement plant with respect to co-processing of waste:

Provided that till the time the standards are notified, the procedure as applicable to other kind of utilisation of hazardous and other waste, as enumerated above shall be followed.

10. Standard Operating Procedure or guidelines for actual users.

- The Ministry of Environment, Forest and Climate Change or the Central Pollution Control Board may issue guidelines or standard operating procedures for environmentally sound management of hazardous and other wastes from time to time.

Chapter III

Import and Export of Hazardous and other Wastes

11. Import and export (transboundary movement) of hazardous and other wastes.

- The Ministry of Environment, Forest and Climate Change shall be the nodal Ministry to deal with the transboundary movement of the hazardous and other wastes in accordance with the provisions of these rules.

12. Strategy for Import and export of hazardous and other wastes.

(1)

No import of the hazardous and other wastes from any country to India for disposal shall be permitted.

(2)

The import of hazardous and other wastes from any country shall be permitted only for recycling, recovery, reuse and utilisation including co-processing.

(3)

The import of hazardous waste in Part A of Schedule III may be allowed to actual users with the prior informed consent of the exporting country and shall require the permission of the Ministry of Environment, Forest and Climate Change.

(4)

The import of other wastes in Part B of Schedule III may be allowed to actual users with the permission of the Ministry of Environment, Forest and Climate Change.

(5)

The import of other wastes in Part D of Schedule III will be allowed as per procedure given in rule 13 and as per the note below the said Schedule.

(6)

No import of the hazardous and other wastes specified in Schedule VI shall be permitted.

(6A)

[***]

[Omitted 'sub-rule 6A' by Notification No. G.S.R. 178(E), dated 1.3.2019 (w.e.f. 4.4.2016).]

(7)

The export of hazardous and other wastes from India listed in Part A and Part B of Schedule III and Schedule VI shall be with the permission of Ministry of Environment, Forest and Climate Change. In case of applications for export of hazardous and other waste listed in Part A of Schedule III and Schedule VI, they shall be considered on the basis of

prior informed consent of the importing country.

(8)

The import and export of hazardous and other wastes not specified in Schedule III, but exhibiting the hazardous characteristics outlined in Part C of Schedule III shall require prior written permission of the Ministry of Environment, Forest and Climate Change before it is imported to or exported from India, as the case may be.

13. Procedure for import of hazardous and other wastes.

(1)

Actual users intending to import or transit for transboundary movement of hazardous and other wastes specified in Part A and Part B of Schedule III shall apply in Form 5 along with the documents listed therein, to the Ministry of Environment, Forest and Climate Change for the proposed import together with the prior informed consent of the exporting country in respect of Part A of Schedule III waste, and shall send a copy of the application, simultaneously, to the concerned State Pollution Control Board for information and the acknowledgment in this respect from the concerned State Pollution Control Board shall be submitted to the Ministry of Environment, Forest and Climate Change along with the application.

(2)

For the import of other wastes listed in Part D of Schedule III, the importer shall not require the permission of the Ministry of Environment, Forest and Climate Change. However, the importer shall furnish the required information as per Form 6 to the Customs authorities, accompanied with the following documents in addition to those listed in Schedule VIII, wherever applicable. For used electrical and electronic assemblies listed at serial numbers 4 (e) to 4(i) of Schedule VIII (Basel No. B1110), there is no specific requirement of documentation under these rules:

(a)

the import license from Directorate General of Foreign Trade, if applicable;

(b)

the valid consents under the Water (Prevention and Control of Pollution) Act, 1974 (25 of 1974) and the Air (Prevention and Control of Pollution) Act, 1981 (21 of 1981) and the authorisation under these rules as well as the authorisation under the E-Waste (Management and Handling) Rules, 2011, as amended from time to time, whichever applicable;

(c)

importer who is a trader, importing waste on behalf of actual users, shall obtain one time authorisation in Form 7 and copy of this authorisation shall be appended to Form 6.

(3)

For Part B of Schedule III, in case of import of any used electrical and electronic assemblies or spares or part or component or consumables as listed under Schedule I of the E-Waste (Management and Handling) Rules, 2011, as amended from time to time, the importer need to obtain extended producer responsibility-authorisation as producer under the said E-Waste (Management and Handling) Rules, 2011.

(4)

Prior to clearing of consignment of wastes listed in Part D of Schedule III, the Custom authorities shall verify the documents as given in column (3) of Schedule VIII.

(5)

On receipt of the complete application with respect to Part A and Part B of Schedule III, the Ministry of Environment, Forest and Climate Change shall examine the application considering the comments and observations, if any, received from the State Pollution Control Boards, and may grant the permission for import within a period of sixty days subject to the condition that the importer has -

(i)

the environmentally sound facilities;

(ii)

adequate arrangements for treatment and disposal of wastes generated;

(iii)

a valid authorisation and consents from the State Pollution Control Board;

(iv)

prior informed consent from the exporting country in case of Part A of Schedule III wastes.

(6)

The Ministry of Environment, Forest and Climate Change shall forward a copy of the permission to the concerned Port and Customs authorities, Central Pollution Control Board and the concerned State Pollution Control Board for ensuring compliance with respect to their respective functions given in Schedule VII.

(7)

The importer of the hazardous and other wastes shall maintain records of the hazardous and other waste imported by him in Form 3 and the record so maintained shall be made available for inspection.

(8)

The importer of the hazardous and other wastes shall file an annual return in Form 4 to the State Pollution Control Board on or before the 30th day of June following the financial year to which that return relates.

(9)

Samples of hazardous and other wastes being imported for testing or research and development purposes up to 1000 gm or 1000 ml shall be exempted from need of taking permission for import under these rules.

(10)

The Port and Customs authorities shall ensure that shipment is accompanied with the movement document as given in Form 6 and the test report of analysis of the waste, consignment, wherever applicable, from a laboratory accredited or recognised by the exporting country. In case of any doubt, the customs may verify the analysis.

14. Procedure for Export of hazardous and other wastes from India.

(1)

Any occupier intending to export waste specified in Part A of Schedule III, Part B of Schedule III and Schedule VI, shall make an application in Form 5 along with insurance cover to the Ministry of Environment, Forest and Climate Change for the proposed transboundary movement of the hazardous and other wastes together with the prior informed consent in writing from the importing country in respect of wastes specified in Part A of Schedule III and Schedule VI.

(2)

On receipt of an application under sub-rule (1), the Ministry of Environment, Forest and Climate Change may give permission for the proposed export within a period of sixty days from the date of submission of complete application and may impose such conditions as it may consider necessary.

(3)

The Ministry of Environment, Forest and Climate Change shall forward a copy of the permission granted under sub-rule (2) to the State Pollution Control Board of the State where the waste is generated and the Pollution Control Board of the State where the port of export is located and the concerned Port and Customs authorities for ensuring compliance of the conditions of the export permission.

(4)

The exporter shall ensure that no consignment is shipped before the prior informed consent is received from the importing country, wherever applicable.

(5)

The exporter shall also ensure that the shipment is accompanied with movement document in Form 6.

(6)

The exporter of the hazardous and other wastes shall maintain the records of the hazardous or other waste exported by him in Form 3 and the record so maintained shall be available for inspection.

15. Illegal traffic.

(1)

The export and import of hazardous or other wastes from and into India, respectively shall be deemed illegal, if,-

(i)

it is without permission of the Central Government in accordance with these rules; or

(ii)

the permission has been obtained through falsification, mis-representation or fraud; or

(iii)

it does not conform to the shipping details provided in the movement documents; or

(iv)

it results in deliberate disposal (i.e., dumping) of hazardous or other waste in contravention of the Basel Convention and of general principles of international or domestic law.

(2)

In case of illegal import of the hazardous or other waste, the importer shall re-export the waste in question at his cost within a period of ninety days from the date of its arrival into India and its implementation will be ensured by the concerned Port and the Custom authority. In case of disposal of such waste by the Port and Custom authorities, they shall do so in accordance with these rules with the permission of the Pollution Control Board of the State where the Port exists.

(3)

In case of illegal import of hazardous or other waste, where the importer is not traceable then the waste either can be sold by the Customs authority to any user having authorisation under these rules from the concerned State Pollution Control Board or can be sent to authorised treatment, storage and disposal facility.

Chapter - IV Treatment, Storage and Disposal Facility for Hazardous and other Wastes

16. Treatment, storage and disposal facility for hazardous and other wastes.

(1)

The State Government, occupier, operator of a facility or any association of occupiers shall individually or jointly or severally be responsible for identification of sites for establishing the facility for treatment, storage and disposal of the hazardous and other waste in the State.

(2)

The operator of common facility or occupier of a captive facility, shall design and set up the treatment, storage and disposal facility as per technical guidelines issued by the Central Pollution Control Board in this regard from time to time and shall obtain approval from the State Pollution Control Board for design and layout in this regard.

(3)

The State Pollution Control Board shall monitor the setting up and operation of the common or captive treatment, storage and disposal facility, regularly.

(4)

The operator of common facility or occupier of a captive facility shall be responsible for safe and environmentally sound operation of the facility and its closure and post closure phase, as per guidelines or standard operating procedures issued by the Central Pollution Control Board from time to time.

(5)

The operator of common facility or occupier of a captive facility shall maintain records of hazardous and other wastes handled by him in Form 3.

(6)

The operator of common facility or occupier of a captive facility shall file an annual return in Form 4 to the State Pollution Control Board on or before the 30th day of June following the financial year to which that return relates.

Chapter - V Packaging, Labelling, and Transport of Hazardous and other Wastes.

17. Packaging and Labelling.

(1)

Any occupier handling hazardous or other wastes and operator of the treatment, storage and disposal facility shall ensure that the hazardous and other wastes are packaged in a manner suitable for safe handling, storage and transport as per the guidelines issued by the Central Pollution Control Board from time to time. The labeling shall be done as per Form 8.

(2)

The label shall be of non-washable material, weather proof and easily visible.

18. Transportation of hazardous and other wastes.

(1)

The transport of the hazardous and other waste shall be in accordance with the provisions of these rules and the rules made by the Central Government under the Motor Vehicles Act, 1988 and the guidelines issued by the Central Pollution Control Board from time to time in this regard.

(2)

The occupier shall provide the transporter with the relevant information in Form 9, regarding the hazardous nature of the wastes and measures to be taken in case of an emergency and shall label the hazardous and other wastes containers as per Form 8.

(3)

In case of transportation of hazardous and other waste for final disposal to a facility existing in a State other than the State where the waste is generated, the sender shall obtain 'No Objection Certificate' from the State Pollution Control Board of both the States.

(4)

In case of transportation of hazardous and other waste for recycling or Utilization including co-processing, the sender shall intimate both the State Pollution Control Boards before handing over the waste to the transporter.

(5)

In case of transit of hazardous and other waste for recycling, utilisation including co-processing or disposal through a State other than the States of origin and destination, the sender shall give prior intimation to the concerned State Pollution Control Board of the States of transit before handing over the wastes to the transporter.

(6)

In case of transportation of hazardous and other waste, the responsibility of safe transport shall be either of the sender or the receiver whosoever arranges the transport and has the necessary authorization for transport from the concerned State Pollution Control Board. This responsibility should be clearly indicated in the manifest.

(7)

The authorisation for transport shall be obtained either by the sender or the receiver on whose behalf the transport is being arranged.

19. Manifest system (Movement Document) for hazardous and other waste to be used within the country only.

(1)

The sender of the waste shall prepare seven copies of the manifest in Form 10 comprising of colour code indicated below and all seven copies shall be signed by the sender:

Copy number with colour code

Purpose

(1)

(2)

Copy 1

(White)

To be forwarded by the sender to the State Pollution Control Board after signing all the seven copies.

Copy 2

(Yellow)

To be retained by the sender after taking signature on it from the transporter and the rest of the five signed copies to be carried by the transporter.

Copy 3

(Pink)

To be retained by the receiver (actual user or treatment storage and disposal facility operator) after receiving the waste and the remaining four copies are to be duly signed by the receiver.

Copy 4

(Orange)

To be handed over to the transporter by the receiver after accepting waste.

Copy 5

(Green)

To be sent by the receiver to the State Pollution Control Board.

Copy 6

(Blue)

To be sent by the receiver to the sender.

Copy 7

(Grey)

To be sent by the receiver to the State Pollution Control

Board of the sender in case the sender is in another State.

(2)

The sender shall forward copy 1 (white) to the State Pollution Control Board, and in case the hazardous or other wastes is likely to be transported through any transit State, the sender shall intimate State Pollution Control Boards of transit States about the movement of the waste.

(3)

No transporter shall accept waste from the sender for transport unless it is accompanied by signed copies 3 to 7 of the manifest.

(4)

The transporter shall submit copies 3 to 7 of the manifest duly signed with date to the receiver along with the waste consignment.

(5)

The receiver after acceptance of the waste shall hand over copy 4 (orange) to the transporter and send copy 5 (green) to his State Pollution Control Board and send copy 6 (blue) to the sender and the copy 3 (pink) shall be retained by the receiver.

(6)

The copy 7 (grey) shall only be sent to the State Pollution Control Board of the sender, if the sender is in another State.

Chapter VI

Miscellaneous

20. Records and returns.

(1)

The occupier handling hazardous or other wastes and operator of disposal facility shall maintain records of such operations in Form 3.

(2)

The occupier handling hazardous and other wastes and operator of disposal facility shall send annual returns to the State Pollution Control Board in Form 4.

(3)

The State Pollution Control Board based on the annual returns received from the occupiers and the operators of the facilities for disposal of hazardous and other wastes shall prepare an annual inventory of the waste generated; waste recycled, recovered, utilised including co-processed; waste re-exported and waste disposed and submit to the Central Pollution Control Board by the 30th day of September every year. The State Pollution Control Board shall also prepare the inventory of hazardous waste generators, actual users, and common and captive disposal facilities and shall submit the information to Central Pollution Control Board every two years.

(4)

The Central Pollution Control Board shall prepare the consolidated review report on management of hazardous and other wastes and forward it to the Ministry of Environment, Forest and Climate Change, along with its recommendations before the 30th day of December once in every year.

21. Responsibility of authorities.

- The authority specified in column (2) of Schedule VII shall perform the duties as specified in column (3) of the said Schedule subject to the provisions of these rules.

22. Accident reporting.

- Where an accident occurs at the facility of the occupier handling hazardous or other wastes and operator of the disposal facility or during transportation, the occupier or the operator or the transporter shall immediately intimate the State Pollution Control Board through telephone, e-mail about the accident and subsequently send a report in Form 11.

23. Liability of occupier, importer or exporter and operator of a disposal facility.

(1)

The occupier, importer or exporter and operator of the disposal facility shall be liable for all damages caused to the

environment or third party due to improper handling and management of the hazardous and other waste.

(2)

The occupier and the operator of the disposal facility shall be liable to pay financial penalties as levied for any violation of the provisions under these rules by the State Pollution Control Board with the prior approval of the Central Pollution Control Board.

24. Appeal.

(1)

Any person aggrieved by an order of suspension or cancellation or refusal of authorisation or its renewal passed by the State Pollution Control Board may, within a period of thirty days from the date on which the order is communicated to him, prefer an appeal in Form 12 to the Appellate Authority, namely, the Environment Secretary of the State.

(2)

The Appellate Authority may entertain the appeal after expiry of the said period of thirty days, if it is satisfied that the appellant was prevented by sufficient cause from filing the appeal in time.

(3)

Every appeal filed under this rule shall be disposed of within a period of sixty days from the date of its filing.

I

[See rule 3 (1) (17) (i)]

List of processes generating hazardous wastes

S.No.

Processes

Hazardous Waste*

(1)

(2)

(3)

1.

Petrochemical processes and pyrolytic operations

1.1

Furnace or reactor residue and debris

1.2

Tarry residues and still bottoms from distillation

1.3

Oily sludge emulsion

1.4

Organic residues

1.5

Residues from alkali wash of fuels

1.6

Spent catalyst and molecular sieves

1.7

Oil from wastewater treatment

2.

Crude oil and natural gas production

2.1

Drill cuttings excluding those from water based mud

2.2

Sludge containing oil

2.3

Drilling mud containing oil

3.

Cleaning, emptying and maintenance of petroleum oil storage tanks including ships

3.1

cargo residue, washing water and sludge containing oil

3.2

cargo residue and sludge containing chemicals

3.3

Sludge and filters contaminated with oil

3.4

Ballast water containing oil from ships

4.

Petroleum refining or re-processing of used oil or recycling of waste oil

4.1

Oil sludge or emulsion

4.2

Spent catalyst

4.3

Slop oil

4.4

Organic residue from processes

4.5

Spent clay containing oil

5.

Industrial operations using mineral or synthetic oil as lubricant in hydraulic systems or other applications

5.1

Used or spent oil

5.2

Wastes or residues containing oil

5.3

Waste cutting oils

6.

Secondary production and / or industrial use of zinc

6.1

Sludge and filter press cake arising out of production of Zinc Sulphate and other Zinc Compounds.

6.2

Zinc fines or dust or ash or skimmings in dispersible form

6.3

Other residues from processing of zinc ash or skimmings

6.4

Flue gas dust and other particulates

7.

Primary production of zinc or lead or copper and other non-ferrous metals except aluminium

7.1

Flue gas dust from roasting

7.2

Process residues

7.3

Arsenic-bearing sludge

7.4

Non-ferrous metal bearing sludge and residue.

7.5

Sludge from scrubbers

8.

Secondary production of copper

8.1

Spent electrolytic solutions

8.2

Sludge and filter cakes

8.3

Flue gas dust and other particulates

9.

Secondary production of lead

9.1

Lead bearing residues

9.2

Lead ash or particulate from flue gas

9.3

Acid from used batteries

10.

Production and/or industrial use of cadmium and arsenic and their compounds

10.1

Residues containing cadmium and arsenic

11.

Production of primary and secondary aluminum

11.1

Sludges from off-gas treatment

11.2

Cathode residues including pot lining wastes

11.3

Tar containing wastes

11.4

Flue gas dust and other particulates

11.5

Drosses and waste from treatment of salt sludge

11.6

Used anode butts

11.7

Vanadium sludge from alumina refineries

12.

Metal surface treatment, such as etching, staining, polishing, galvanizing, cleaning, degreasing, plating, etc.

12.1

Acidic and alkaline residues

12.2

Spent acid and alkali

12.3

Spent bath and sludge containing sulphide, cyanide and toxic metals

12.4

Sludge from bath containing organic solvents

12.5

Phosphate sludge

12.6

Sludge from staining bath

12.7

Copper etching residues

12.8

Plating metal sludge

13.

Production of iron and steel including other ferrous alloys
(electric furnace; steel rolling and finishing mills; Coke oven
and by products plant)

13.1

Spent pickling liquor

13.2

Sludge from acid recovery unit

13.3

Benzol acid sludge

13.4

Decanter tank tar sludge

13.5

Tar storage tank residue

13.6

Residues from coke oven by product plant.

14.

Hardening of steel

14.1

Cyanide-, nitrate-, or nitrite-containing sludge

14.2

Spent hardening salt

15.

Production of asbestos or asbestos-containing materials

15.1

Asbestos-containing residues

15.2

Discarded asbestos

15.3

Dust or particulates from exhaust gas treatment.

16.

Production of caustic soda and chlorine

16.1

Mercury bearing sludge generated from mercury cell process

16.2

Residue or sludges and filter cakes

16.3

Brine sludge

17.

Production of mineral acids

17.1

Process acidic residue, filter cake, dust

17.2

Spent catalyst

18.

Production of nitrogenous and complex fertilizers

18.1

Spent catalyst

18.2

Carbon residue

18.3

Sludge or residue containing arsenic

18.4

Chromium sludge from water cooling tower

19.

Production of phenol

19.1

Residue or sludge containing phenol

19.2

Spent catalyst

20.

Production and/or industrial use of solvents

20.1

Contaminated aromatic, aliphatic or napthenic solvents may or may not be fit for reuse.

20.2

Spent solvents

20.3

Distillation residues

20.4

Process Sludge

21.

Production and/or industrial use of paints, pigments, lacquers, varnishes and inks

21.1

Process wastes, residues and sludges

21.2

Spent solvent

22.

Production of plastics

22.1

Spent catalysts

22.2

Process residues

23.

Production and /or industrial use of glues, organic cements, adhesive and resins

23.1

Wastes or residues (not made with vegetable or animal materials)

23.2

Spent solvents

24.

Production of canvas and textiles

24.1

Chemical residues

25.

Industrial production and formulation of wood preservatives

25.1

Chemical residues

25.2

Residues from wood alkali bath

26.

Production or industrial use of synthetic dyes,
dye-intermediates and pigments

26.1

Process waste sludge/residues containing acid, toxic metals,
organic compounds

26.2

Dust from air filtration system

26.3

Spent acid

26.4

Spent solvent

26.5

Spent catalyst

27.

Production of organic-silicone compound

27.1

Process residues

28.

Production/ formulation of drugs/pharmaceutical and health
care product

28.1

Process Residue and wastes

28.2

Spent catalyst

28.3

Spent carbon

28.4

Off specification products

28.5

Date-expired products

28.6

Spent solvents

29.

Production, and formulation of pesticides including
stock-piles

29.1

Process wastes or residues

29.2

Sludge containing residual pesticides

29.3

Date-expired and off-specification pesticides

29.4

Spent solvents

29.5

Spent catalysts

29.6

Spent acids

30.

Leather tanneries

30.1

Chromium bearing residue and sludge

31.

Electronic Industry

31.1

Process residue and wastes

31.2

Spent etching chemicals and solvents

32.

Pulp and Paper Industry

32.1

Spent chemicals

32.2

Corrosive wastes arising from use of strong acid and bases

32.3

Process sludge containing adsorbable organic halides(AOX)

33.

Handling of hazardous chemicals and wastes

33.1

Empty barrels/containers/liners contaminated with hazardous chemicals /wastes

33.2

Contaminated cotton rags or other cleaning materials

34.

De-contamination of barrels / containers used for handling of hazardous wastes/chemicals

34.1

Chemical-containing residue arising from decontamination.

34.2

Sludge from treatment of waste water arising out of cleaning / disposal of barrels / containers

35.

Purification and treatment of exhaust air/gases, water and waste water from the processes in this schedule and common industrial effluent treatment plants (CETP?s)

35.1

Exhaust Air or Gas cleaning residue

35.2

Spent ion exchange resin containing toxic metals

35.3

Chemical sludge from waste water treatment

35.4

Oil and grease skimming

35.5

Chromium sludge from cooling water

36.

Purification process for organic compounds/solvents

36.1

Any process or distillation residue

36.2

Spent carbon or filter medium

37.

Hazardous waste treatment processes, e.g. pre-processing, incineration and concentration

37.1

Sludge from wet scrubbers

37.2

Ash from incinerator and flue gas cleaning residue

37.3

Concentration or evaporation residues

38.

Chemical processing of Ores containing heavy metals such as Chromium, Manganese, Nickel, Cadmium etc.

38.1

Process residues

38.2

Spent acid

* The inclusion of wastes contained in this Schedule does not preclude the use of Schedule II to demonstrate that the waste is not hazardous. In case of dispute, the matter would be referred to the Technical Review Committee constituted by Ministry of Environment, Forest and Climate Change.

Note: The high volume low effect wastes such as fly ash, Phosphogypsum, red mud, jarosite, Slags from pyrometallurgical operations, mine tailings and ore beneficiation rejects are excluded from the category of hazardous wastes. Separate guidelines on the management of these wastes shall be issued by Central Pollution Control Board.

II

[See rule 3 (1) (17) (ii)]

List of waste constituents with concentration limits

Class A: Based on leachable concentration limits [Toxicity Characteristic Leaching Procedure (TCLP) or Soluble Threshold Limit Concentration (STLC)]

Class

Constituents

Concentration in mg/l

(1)

(2)

(3)

A1

Arsenic

5.0

A2

Barium

100.0

A3

Cadmium

1.0

A4

Chromium and/or
Chromium (III) compounds

5.0

A5

Lead

5.0

A6

Manganese

10.0

A7

Mercury

0.2

A8

Selenium

1.0

A9

Silver

5.0

A10

Ammonia

50*

A11

Cyanide

20*

A12

Nitrate (as
nitrate-nitrogen)

1000.0

A13

Sulphide (as
H₂S)

5.0

A14

1,1-Dichloroethylene

0.7

A15

1,2-Dichloroethane

0.5

A16

1,4-Dichlorobenzene

7.5

A17

2,4,5-Trichlorophenol

400.0

A18

2,4,6-Trichlorophenol

2.0

A19

2,4-Dinitrotoluene

0.13

A20

Benzene
0.5
A21
Benzo (a)
Pyrene
0.001
A22
Bromodichloromethane
6.0
A23
Bromoform
10.0
A24
Carbon
tetrachloride
0.5
A25
Chlorobenzene
100.0
A26
Chloroform
6.0
A27
Cresol (ortho+
meta+ para)
200.0
A28
Dibromochloromethane
10.0
A29
Hexachlorobenzene
0.13
A30
Hexachlorobutadiene
0.5
A31
Hexachloroethane
3.0
A32
Methyl ethyl
ketone
200.0
A33
Naphthalene
5.0
A34
Nitrobenzene
2.0
A35
Pentachlorophenol
100.0

A36
Pyridine
5.0
A37
Tetrachloroethylene
0.7
A38
Trichloroethylene
0.5
A39
Vinyl chloride
0.2
A40
2,4,5-TP
(Silvex)
1.0
A41
2,4-Dichlorophenoxyacetic
acid
10.0
A42
Alachlor
2.0
A43
Alpha HCH
0.001
A44
Atrazine
0.2
A45
Beta HCH
0.004
A46
Butachlor
12.5
A47
Chlordane
0.03
A48
Chlorpyrifos
9.0
A49
Delta HCH
0.004
A50
Endosulfan
(alpha+ beta+ sulphate)
0.04
A51
Endrin
0.02

A52
Ethion
0.3
A53
Heptachlor (&
its Epoxide)
0.008
A54
Isoproturon
0.9
A55
Lindane
0.4
A56
Malathion
19
A57
Methoxychlor
10
A58
Methyl
parathion
0.7
A59
Monocrotophos
0.1
A60
Phorate
0.2
A61
Toxaphene
0.5
A62
Antimony
15
A63
Beryllium
0.75
A64
Chromium (VI)
5.0
A65
Cobalt
80.0
A66
Copper
25.0
A67
Molybdenum
350
A68

Nickel
20.0
A69
Thallium
7.0
A70
Vanadium
24.0
A71
Zinc
250
A72
Fluoride
180.0
A73
Aldrin
0.14
A74
Dichlorodiphenyltrichloroethane
(DDT), Dichlorodiphenyldichloroethylene (DDE),
Dichlorodiphenyldichloroethane (DDD)
0.1
A75
Dieldrin
0.8
A76
Kepone
2.1
A77
Mirex
2.1
A78
Polychlorinated
biphenyls
5.0
A79
Dioxin
(2,3,7,8-TCDD)
0.001
Class B: Based on Total Threshold Limit Concentration (TTLC)
Class
Constituent
Concentration in mg/kg
(1)
(2)
(3)
B1
Asbestos
10000
B2
Total Petroleum

Hydrocarbons (TPH) (C5 - C36)

5,000

Note:

(1)

The testing method for list of constituents at A1 to A61 in Class-A, shall be based on Toxicity Characteristic Leaching Procedure (TCLP) and for extraction of leachable constituents, USEPA Test Method 1311 shall be used.

(2)

The testing method for list of constituents at A62 to A79 in Class-A, shall be based on Soluble Threshold Limit Concentration (STLC) and Waste Extraction Test (WET) Procedure given in Appendix II of section 66261 of Title 22 of California Code regulation (CCR) shall be used.

(3)

In case of ammonia (A10), cyanide (A11) and chromium VI (A64), extractions shall be conducted using distilled water in place of the leaching media specified in the TCLP/STLC procedures.

(4)

A summary of above specified leaching/extraction procedures is included in manual for characterization and analysis of hazardous waste published by Central Pollution Control Board and in case the method is not covered in the said manual, suitable reference method may be adopted for the measurement.

(5)

In case of asbestos, the specified concentration limits apply only if the substances are in a friable, powdered or finely divided state.

(6)

The hazardous constituents to be analyzed in the waste shall be relevant to the nature of the industry and the materials used in the process.

Wastes which contain any of the constituents listed below shall be considered as hazardous, provided they exhibit the characteristics listed in Class-C of this Schedule :

1.

Acid Amides

2.

Acid anhydrides

3.

Amines

4.

Anthracene

5.

Aromatic

compounds other than those listed in Class A

6.

Bromates,

(hypo-bromites)

7.

Chlorates

(hypo-chlorites)

8.

Carbonyls

9.

Ferro-silicate

and alloys

10.

Halogen-

containing compounds which produce acidic vapours on contact with humid air or water e.g. silicon tetrachloride, aluminum chloride,

titanium tetrachloride

11.

Halogen-

silanes

12.

Halogenated

Aliphatic Compounds

13.

Hydrazine (s)

14.

Hydrides

15.

Inorganic Acids

16.

Inorganic

Peroxides

17.

Inorganic Tin

Compounds

18.

Iodates

19.

(Iso-and

thio-) Cyanates

20.

Manganese-silicate

21.

Mercaptans

22.

Metal Carbonyls

23.

Metal hydrogen

sulphates

24.

Nitrides

25.

Nitriles

26.

Organic azo and

azooxy Compounds

27.

Organic

Peroxides

28.

Organic Oxygen

Compounds

29.

Organic Sulphur

Compounds

30.

Organo- Tin

Compounds

31.

Organo nitro-

and nitroso compounds

32.

Oxides and

hydroxides except those of hydrogen, carbon, silicon, iron,

aluminum, titanium, manganese, magnesium, calcium

33.

Phenanthrene

34.

Phenolic

Compounds

35.

Phosphate

compounds except phosphates of aluminum, calcium and iron

36.

Salts of

pre-acids

37.

Total Sulphur

38.

Tungsten

Compounds

39.

Tellurium and

tellurium compounds

40.

White and Red

Phosphorus

41.

2-Acetylaminofluorene

42.

4-Aminodiphenyl

43.

Benzidine and

its salts

44.

Bis

(Chloromethyl) ether

45.

Methyl

chloromethyl ether

46.

1,2-Dibromo-3-chloropropane

47.

3,3'-Dichlorobenzidine

and its salts

48.

4-Dimethylaminoazobenzene

49.

4-Nitrobiphenyl

50.

Beta-Propiolactone

Class C : Based on hazardous Characteristics. - Apart from the concentration limit given above, the substances or wastes shall be classified as hazardous waste if it exhibits any of the following characteristics due to the presence of any hazardous constituents:

Class C1: Flammable. - A waste exhibits the characteristic of flammability or ignitability if a representative sample of the waste has any of the following properties, namely:-

(i)

flammable liquids, or mixture of liquids, or liquids containing solids in solution or suspension (for example, paints, varnishes, lacquers, etc; but not including substances or wastes otherwise classified on account of their dangerous characteristics), which give off a flammable vapour at temperature less than 60°C. This flash point shall be measured as per ASTM D 93-79 closed-cup test method or as determined by an equivalent test method published by Central Pollution Control Board;

(ii)

it is not a liquid and is capable, under standard temperature and pressure, of causing fire through friction, absorption of moisture or spontaneous chemical changes and, when ignited, burns vigorously and persistently creating a hazard;

(iii)

it is an ignitable compressed gas;

(iv)

It is an oxidizer and for the purposes of characterisation is a substance such as a chlorate, permanganate, inorganic peroxide, or a nitrate, that yields oxygen readily to stimulate the combustion of organic matter.

Class C2: Corrosive. - A waste exhibits the characteristic of corrosivity if a representative sample of the waste has either of the following properties, namely:-

(i)

it is aqueous and has a pH less than or equal to 2 or greater than or equal to 12.5;

(ii)

it is a liquid and corrodes steel (SAE 1020) at a rate greater than 6.35 mm per year at a test temperature of 55 °C;

(iii)

it is not aqueous and, when mixed with an equivalent weight of water, produces a solution having a pH less than or equal to 2 or greater than or equal to 12.5;

(iv)

it is not a liquid and, when mixed with an equivalent weight of water, produces a liquid that corrodes steel (SAE1020) at a rate greater than 6.35 mm per year at a test temperature of 55°C.

Note: For the purpose of determining the corrosivity, the Bureau of Indian Standard 9040 C method for pH determination, NACE TM 01 69 : Laboratory Corrosion Testing of Metals and EPA 1110A method for corrosivity towards steel (SAE1020) to establish the corrosivity characteristics shall be adopted.

Class C3: Reactive or explosive. - A waste exhibits the characteristic of reactivity if a representative sample of the waste it has any of the following properties, namely:-

(i)

it is normally unstable and readily undergoes violent change without detonating;

(ii)

it reacts violently with water or forms potentially explosive mixtures with water;

(iii)

when mixed with water, it generates toxic gases, vapours or fumes in a quantity sufficient to present a danger to human health or the environment;

(iv)

it is a cyanide or sulphide bearing waste which, when exposed to pH conditions between 2 and 12.5, can generate toxic gases, vapours or fumes in a quantity sufficient to present a danger to human health or the environmental;

(v)

it is capable of detonation or explosive reaction if it is subjected to a strong initiating source or if heated under

confinement;

(vi)

it is readily capable of detonation or explosive decomposition or reaction at standard temperature and pressure;

(vii)

it is a forbidden explosive.

Class C4: Toxic. - A waste exhibits the characteristic of toxicity, if, :-

(i)

the concentration of the waste constituents listed in Class A and B (of this schedule) are equal to or more than the permissible limits prescribed therein;

(ii)

it has an acute oral LD50 less than 2,500 milligrams per kilogram;

(iii)

it has an acute dermal LD50 less than 4,300 milligrams per kilogram;

(iv)

it has an acute inhalation LC50 less than 10,000 parts per million as a gas or vapour;

(v)

it has acute aquatic toxicity with 50% mortality within 96 hours for zebra fish (*Brachidanio rerio*) at a concentration of 500 milligrams per litre in dilution water and test conditions as specified in BIS test method 6582 - 2001.

(vi)

it has been shown through experience or by any standard reference test-method to pose a hazard to human health or environment because of its carcinogenicity, mutagenicity, endocrine disruptivity, acute toxicity, chronic toxicity, bio-accumulative properties or persistence in the environment.

Class C5: Substances or Wastes liable to spontaneous combustion. - Substances or Wastes which are liable to spontaneous heating under normal conditions encountered in transport, or to heating up on contact with air, and being then liable to catch fire.

Class C6: Substances or Wastes which, in contact with water emit flammable gases. - Substances or Wastes which, by interaction with water, are liable to become spontaneously flammable or to give off flammable gases in dangerous quantities.

Class C7: Oxidizing. - Substances or Wastes which, while in themselves not necessarily combustible, may, generally by yielding oxygen cause, or contribute to, the combustion of other materials.

Class C8: Organic Peroxides. - Organic substances or Wastes which contain the bivalent O-O structure, which may undergo exothermic self-accelerating decomposition.

Class C9: Poisons (acute). - Substances or Wastes liable either to cause death or serious injury or to harm human health if swallowed or inhaled or by skin contact.

Class C10: Infectious substances. - Substances or Wastes containing viable micro-organisms or their toxins which are known or suspected to cause disease in animals or humans.

Class C11: Liberation of toxic gases in contact with air or water. - Substances or Wastes which, by interaction with air or water, are liable to give off toxic gases in dangerous quantities.

Class C12: Eco-toxic. - Substances or Wastes which if released, present or may present immediate or delayed adverse impacts to the environment by means of bioaccumulation or toxic effects upon biotic systems or both.

Class C13: Capable, by any means, after disposal, of yielding another material, e.g., leachate, which possesses any of the characteristics listed above.

III

[See rules 3 (1) (17) (iii), 3 (23), 12, 13 and 14]

Part A ? List of hazardous wastes applicable for import and export with Prior Informed Consent [Annexure VIII of the Basel Convention*]

Basel No.

Description of Hazardous Wastes

(1)

(2)

A1

Metal and Metal bearing wastes

A1010

Metal wastes and waste consisting of alloys of any of the following but excluding such wastes specifically listed in Part B and Part D

-

Antimony

-

Cadmium

-

Lead

-

Tellurium

A1020

Waste having as constituents or contaminants, excluding metal wastes in massive form, any or the following:

-

Antimony, antimony compounds

-

Cadmium, cadmium compounds

-

Lead, lead compounds

-

Tellurium, tellurium compounds

A1040

Waste having metal carbonyls as constituents

A1050

Galvanic sludges

A1070

Leaching residues from zinc processing, dust and sludges such as jarosite, hematite, etc.

A1080

Waste zinc residues not included in Part B, containing lead and cadmium in concentrations sufficient to exhibit hazard characteristics indicated in Part C

A1090

Ashes from the incineration of insulated copper wire

A1100

Dusts and residues from gas cleaning systems of copper smelters

A1120

Waste sludges, excluding anode slimes, from electrolyte purification systems in copper electrorefining and electrowinning operations

A1140

Waste cupric chloride and copper cyanide catalysts not in liquid form note the related entry in Schedule VI

A1150

Precious metal ash from incineration of printed circuit boards not included in Part B

A1160

Waste lead acid batteries, whole or crushed

A1170

Unsorted waste batteries excluding mixtures of only Part B batteries. Waste batteries not specified in Part B containing constituents mentioned in Schedule II to an extent to render them hazardous

A2

Wastes containing principally inorganic constituents, which may contain metals and organic materials

A2010

Glass waste from cathode-ray tubes and other activated glasses

A2030

Waste catalysts but excluding such wastes specified in Part B

A3

Wastes containing principally organic constituents, which may contain metals and inorganic materials

A3010

Waste from the production or processing of petroleum coke and bitumen

A3020

Waste mineral oils unfit for their originally intended use

A3050

Wastes from production, formulation and use of resins, latex, plasticizers, glues or adhesives excluding such wastes specified in Part B (B4020)

A3120

Fluff-light fraction from shredding

A3130

Waste organic phosphorus compounds

A4

Wastes which may contain either inorganic or organic constituents

A4010

Wastes from the production, preparation and use of pharmaceutical products but excluding such waste specified in Part B

A4040

Wastes from the manufacture, formulation and use of wood-preserving chemicals (does not include wood treated with wood preserving chemicals)

A4070

Waste from the production, formulation and use of inks, dyes, pigments, paints, lacquers, varnish excluding those specified in Part B (B4010)

A4100

Wastes from industrial pollution control devices for cleaning of industrial off-gases but excluding such wastes specified in Part B

A4120

Wastes that contain, consist of or are contaminated with peroxides.

A4130

Wastes packages and containers containing Schedule II constituents in concentration sufficient to exhibit Part C of Schedule III hazard characteristics.

A4140

Waste consisting of or containing off specification or outdated chemicals (unused within the period recommended by the manufacturer) corresponding to constituents mentioned in Schedule II and exhibiting Part C of Schedule III hazard characteristics.

A4160

Spent activated carbon not included in Part B, B2060

*This List is based on Annexure VIII of the Basel Convention on Transboundary Movement of Hazardous Wastes and comprises of wastes characterized as hazardous under Article I, paragraph 1(a) of the Convention. Inclusion of wastes on this list does not preclude the use of hazard.

Characteristics given in Annexure VIII of the Basel Convention (Part C of this Schedule) to demonstrate that the wastes are not hazardous. Hazardous wastes in Part-A are restricted and cannot be allowed to be imported without permission from the Ministry of Environment, Forest and Climate Change and the Directorate General of Foreign Trade license, if applicable.

Part B ? List of other wastes applicable for import and export and not requiring Prior Informed Consent [Annex IX of the Basel Convention*]

Basel No.

Description of wastes

(1)

(2)

B1

Metal and metal-bearing wastes

B1010

Metal and metal-alloy wastes in metallic, non-dispersible form:

-

Thorium scrap

-

Rare earths scrap

B1020

Clean, uncontaminated metal scrap, including alloys, in bulk finished form (sheet, plates, beams, rods, etc.), of:

-

Antimony scrap

-

Beryllium scrap

-

-

Cadmium scrap

-

-

Lead scrap (excluding lead acid batteries)

-

Selenium scrap

-

Tellurium scrap

B1030

Refractory metals containing residues

B1031

Molybdenum, tungsten, titanium, tantalum, niobium and rhenium metal and metal alloy wastes in metallic dispersible form (metal powder), excluding such wastes as specified in Part A under entry A1050, Galvanic sludges

B1040

Scrap assemblies from electrical power generation not contaminated with lubricating oil, PCB or PCT to an extent to render them hazardous

B1050

Mixed non-ferrous metal, heavy fraction scrap, containing cadmium, antimony, lead & tellurium mentioned in Schedule II in concentrations sufficient to exhibit Part C characteristics

B1060

Waste selenium and tellurium in metallic elemental form including powder

B1070

Waste of copper and copper alloys in dispersible form, unless they contain any of the constituents mentioned in Schedule II to an extent that they exhibit Part C characteristics

B1080

Zinc ash and residues including zinc alloys residues in dispersible form unless they contain any of the constituents mentioned in Schedule II in concentration such as to exhibit Part C characteristics

B1090

Waste batteries conforming to a standard battery specification, excluding those made with lead, cadmium or mercury

B1100

Metal bearing wastes arising from melting, smelting and refining of metals:

-

Slags from copper processing for further processing or refining containing arsenic, lead or cadmium

-

Slags from precious metals processing for further refining

-

Wastes of refractory linings, including crucibles, originating from copper smelting

-

Tantalum-bearing tin slags with less than 0.5% tin

B1110

Used Electrical and electronic assemblies other than those listed in Part D of Schedule III

Electronic assemblies consisting only of metals or alloys
Waste electrical and electronic assemblies or scrap (including printed circuit boards) not containing components such as accumulators and other batteries included in Part A of Schedule III, mercury switches, glass from cathode-ray tubes and other

activated glass and PCB-capacitors, or not contaminated with Schedule II constituents such as cadmium, mercury, lead, polychlorinated biphenyl) or from which these have been removed, to an extent that they do not possess any of the characteristics contained in Part C of Schedule III (note the related entry in Schedule VI, A1180)

B1120

Spent catalysts excluding liquids used as catalysts, containing any of:

Transition metals, excluding waste catalysts (spent catalysts, liquid used catalysts or other catalysts) in Part A and Schedule VI:

-
-
-
-
-
-
-
-
-
-

Scandium

Vanadium

Manganese

Cobalt

Copper

Yttrium

Niobium

Hafnium

Tungsten

- Titanium

- Chromium

- Iron

- Nickel

- Zinc

- Zirconium

- Molybdenum

- Tantalum

- Rhenium

Lanthanides (rare earth metals):

-

Lanthanum

- Cerium

-

-

-

-

-

-

Praseodymium

Samarium

Gadolinium

Dysprosium

Erbium

Ytterbium

- Neodymium

- Europium

- Terbium

- Holmium

- Thulium

- Lutetium

B1130

Cleaned spent precious metal bearing catalysts

B1140

Precious metal bearing residues in solid form which contain traces of inorganic cyanides

B1150

Precious metals and alloy wastes (gold , silver, the platinum group but not mercury) in a dispersible form, non-liquid form with appropriate packaging and labelling

B1160

Precious metal ash from the incineration of printed circuit boards (note the related entry in Part A A1150)

B1170

Precious metal ash from the incineration of photographic film

B1180

Waste photographic film containing silver halides and metallic silver

B1190

Waste photographic paper containing silver halides and metallic silver

B1200

Granulated slag arising from the manufacture of iron and steel

B1210

Slag arising from the manufacture of iron and steel including slags as a source of Titanium dioxide and Vanadium

B1220

Slag from zinc production, chemically stabilised, having a high iron content (above 20%) and processed according to industrial specifications mainly for construction

B1230

Mill scale arising from the manufacture of iron and steel

B1240

Copper Oxide mill-scale

B2

Wastes containing principally inorganic constituents, which may contain metals and organic materials

B2010

Wastes from mining operations in non-dispersible form:

-

Natural graphite waste

- Slate wastes
- Mica wastes
- Leucite, nepheline and nepheline syenite waste
- Feldspar waste
- Fluorspar waste
- Silica wastes in solid form excluding those used in foundry operations
- B2020
Glass wastes in non-dispersible form:
 - Cullet and other waste and scrap of glass except for glass from cathode-ray tubes and other activated glasses
- B2030
Ceramic wastes in non-dispersible form:
 - Cermet wastes and scrap (metal ceramic composites)
- Ceramic based fibres
- B2040
Other wastes containing principally inorganic constituents:
 - -
-
-
-
-
-
-
-
-
Partially refined calcium sulphate produced from flue gas desulphurization (FGD)
- Waste gypsum wallboard or plasterboard arising from the demolition of buildings
- Slag from copper production, chemically stabilized, having a high iron content (above 20%) and processed according to industrial specifications mainly for construction and abrasive applications
- Sulphur in solid form
- Limestone from production of calcium cyanamide (pH<9)
- Sodium, potassium, calcium chlorides
- Carborundum (silicon carbide)
- Broken concrete

Lithium-tantalum and lithium-niobium containing glass scraps

B2060

Spent activated carbon not containing any of Schedule II constituents to the extent they exhibit Part C characteristics, for example, carbon resulting from the treatment of potable water and processes of the food industry and vitamin production (note the related entry in Part A A4160)

B2070

Calcium fluoride sludge

B2080

Waste gypsum arising from chemical industry processes not included in Schedule VI (note the related entry in A2040)

B2090

Waste anode butts from steel or aluminium production made of petroleum coke or bitumen and cleaned to normal industry specifications (excluding anode butts from chlor alkali electrolyses and from metallurgical industry)

B2100

Waste hydrates of aluminium and waste alumina and residues from alumina production, excluding such materials used for gas cleaning, flocculation or filtration processes

B2130

Bituminous material (asphalt waste) from road construction and maintenance, not containing tar (note the related entry in Schedule VI, A3200)

B3

Wastes containing principally organic constituents, which may contain metals and inorganic materials

[***]

[Omitted 'B3010 solid plastic waste Polymethyl methacrylate' by Notification No. G.S.R. 178(E), dated 1.3.2019 (w.e.f. 4.4.2016).]

B3027

Self-adhesive label laminate waste containing raw materials used in label material production

B3030

Textile wastes

The following materials, provided they are not mixed with other wastes and are prepared to a specification:

-

[Silk waste (including cocoons unsuitable for reeling, yarn waste and garneted stock)

[Substituted by Notification No. G.S.R. 178(E), dated 1.3.2019 (w.e.f. 4.4.2016).]

?

Not carded or combed

?

Other** Export of silk waste is exempted from requiring permission from the Ministry of Environment, Forest and Climate Change.]

-

Waste of wool or of fine or coarse animal hair, including yarn waste but excluding garnetted stock

?

noils of wool or of fine animal hair

?

other waste of wool or of fine animal hair

?

waste of coarse animal hair

-

Cotton waste (including yarn waste and garnetted stock)

?

yarn waste (including thread waste)

?

garnetted stock

?

other

?

Flax tow and waste

?

Tow and waste (including yarn waste and garnetted stock) of true hemp (*Cannabis sativa* L.)

-

Tow and waste (including yarn waste and garnetted stock) of jute and other textile bast fibres (excluding flax, true hemp and ramie)

-

Tow and waste (including yarn waste and garnetted stock) of sisal and other textile fibres of the genus *Agave*

-

Tow, noils and waste (including yarn waste and garnetted stock) of coconut

-

Tow, noils and waste (including yarn waste and garnetted stock) of abaca (Manila hemp or *Musa textilis* Nee)

-

Tow, noils and waste (including yarn waste and garnetted stock) of ramie and other vegetable textile fibres, not elsewhere specified or included

-

Waste (including noils, yarn waste and garnetted stock) of man-made fibres

?

of synthetic fibres

?

of artificial fibres

-

Worn clothing and other worn textile articles

-

Used rags, scrap twine, cordage, rope and cables and worn out articles of twine, cordage, rope or cables of textile materials

?

sorted

?

other

B3035

Waste textile floor coverings, carpets

B3040

Rubber Wastes

The following materials, provided they are not mixed with other wastes:

-
-

Waste and scrap of hard rubber

(e.g., ebonite)

Other rubber wastes (excluding such wastes specified elsewhere)

B3050

Untreated cork and wood waste:

-
-

Wood waste and scrap, whether or not agglomerated in logs, briquettes, pellets or similar forms

Cork waste: crushed, granulated or ground cork

B3060

Wastes arising from agro-food industries provided it is not infectious:

-

Wine lees

-

Dried and sterilized vegetable waste, residues and by-products, whether or not in the form of pellets, of a kind used in animal feeding, not elsewhere specified or included

-

Degras: residues resulting from the treatment of fatty substances or animal or vegetable waxes

-

Waste of bones and horn-cores, unworked, defatted, simply prepared (but not cut to shape), treated with acid or degelatinised

-

Fish waste

-

Cocoa shells, husks, skins and other cocoa waste

-

Other wastes from the agro-food industry excluding by-products which meet national and international requirements and standards for human or animal consumption

B3070

The following wastes:

-
-
-

Waste of human hair

Waste straw

Deactivated fungus mycelium from penicillin production to be used as animal feed

B3080

Waste parings and scrap of rubber

B3090

Paring and other wastes of leather or of composition leather not suitable for the manufacture of leather articles, excluding leather sludges, not containing hexavalent chromium compounds and biocides (note the related entry in Schedule VI, A3100)

B3100

Leather dust, ash, sludges or flours not containing hexavalent chromium compounds or biocides (note the related entry in Schedule VI, A3090)

B3110

Fellmongery wastes not containing hexavalent chromium compounds or biocides or infectious substances (note the related entry in Schedule VI, A3110)

B3120

Wastes consisting of food dyes

B3130

Waste polymer ethers and waste non-hazardous monomer ethers incapable of forming peroxides

B3140

Waste pneumatic and other tyres, excluding those which do not lead to resource recovery, recycling, reclamation but not for direct reuse

B4

Wastes which may contain either inorganic or organic constituents

B4010

Wastes consisting mainly of water-based or latex paints, inks and hardened varnishes not containing organic solvents, heavy metals or biocides to an extent to render them hazardous (note the related entry in Part A, A4070)

B4020

Wastes from production, formulation and use of resins, latex, plasticizers, glues or adhesives, not listed in Part A, free of solvents and other contaminants to an extent that they do not exhibit Part C characteristics (note the related entry in Part A, A3050)

B4030

Used single-use cameras, with batteries not included in Part A

* This list is based on Annexure IX of the Basel Convention on Transboundary Movement of Hazardous Wastes and comprises of wastes not characterized as hazardous under Article-I of the Basel Convention. The wastes in Part-B are restricted and cannot be allowed to be imported without permission from the Ministry of Environment, Forest and Climate Change and the Directorate General of Foreign Trade license, if applicable.

Note:

(1)

Copper dross containing copper greater than 65% and lead and Cadmium equal to or less than 1.25% and 0.1% respectively; spent cleaned metal catalyst containing copper; and copper reverts, cake and residues containing lead and cadmium equal to or less than 1.25% and 0.1% respectively are allowed for import without Director General of Foreign Trade license to units (actual users) authorised by State Pollution Control Board and with the Ministry of Environment,

Forest and Climate Change's permission. Copper reverts, cake and residues containing lead and cadmium greater than 1.25% and 0.1% respectively are under restricted category for which import is permitted only against Director General of Foreign Trade license for the purpose of processing or reuse by units permitted with the Ministry of Environment, Forest and Climate Change (actual users).

(2)

Zinc ash or skimmings in dispersible form containing zinc more than 65% and lead and cadmium equal to or less than 1.25% and 0.1% respectively and spent cleaned metal catalyst containing zinc are allowed for import without Director General of Foreign Trade license to units authorised by State Pollution control Board, Ministry of Environment, Forest and Climate Change's permission (actual users) upto an annual quantity limit indicated in registration letter. Zinc ash and skimmings containing less than 65% zinc and lead and cadmium equal to or more than 1.25% and 0.1% respectively and hard zinc spelter and brass dross containing lead greater than 1.25% are under restricted category for which import is permitted against Director General of Foreign Trade license and only for purpose of processing or reuse by units registered with the Ministry of Environment Forest and Climate Change (actual users).

Part C ? List of Hazardous Characteristics

Code

Characteristic

H 1

Explosive

An explosive substance or waste is a solid or liquid substance or waste (or mixture of substances or wastes) which is in itself capable by chemical reaction of producing gas at such a temperature and pressure and at such a speed as to cause damage to the surrounding.

H 3

Flammable liquids

The word "flammable" has the same meaning as "inflammable". Flammable liquids are liquids, or mixtures of liquids, or liquids containing solids in solution or suspension (for example, paints, varnishes, lacquers, etc. but not including substances or wastes otherwise classified on account of their dangerous characteristics) which give off a flammable vapour at temperatures of not more than 60.5°C, closed-cup test, or not more than 65.6°C, open-cup test. (Since the results of open-cups tests and of closed-cup tests are not strictly comparable and even individual results by the same test are often variable, regulations varying from the above figures to make allowance for such differences would be within the spirit of this definition).

H 4.1

Flammable solids

Solids, or waste solids, other than those classed as explosives, which under conditions encountered in transport are readily combustible, or may cause or contribute to fire through friction.

H 4.2

Substances or wastes liable to spontaneous combustion

Substances or wastes which are liable to spontaneous heating under normal conditions encountered in transport, or to heating up on contact with air, and being then liable to catch fire.

H 4.3

Substances or wastes which, in contact with water emit

flammable gases

Substances or wastes which, by interaction with water, are liable to become spontaneously flammable or to give off flammable gases in dangerous quantities.

H 5.1

Oxidizing

Substances or wastes which, while in themselves not necessarily combustible, may, generally by yielding oxygen cause, or contribute to, the combustion of other materials.

H 5.2

Organic Peroxides

Organic substances or wastes which contain the bivalent-o-o-structure are thermally unstable substances which may undergo exothermic self-accelerating decomposition.

H 6.1

Poisons (acute)

Substances or wastes liable either to cause death or serious injury or to harm human health if swallowed or inhaled or by skin contact.

H 6.2

Infectious substances

Substances or wastes containing viable micro-organisms or their toxins which are known or suspected to cause disease in animals or humans.

H 8

Corrosives

Substances or wastes which, by chemical action, will cause severe damage when in contact with living tissue, or, in the case of leakage, will materially damage, or even destroy, other goods or the means of transport; they may also cause other hazards.

H 10

Liberation of toxic gases in contact with air or water

Substances or wastes which, by interaction with air or water, are liable to give off toxic gases in dangerous quantities.

H 11

Toxic (delayed or chronic)

Substances or wastes which, if they are inhaled or ingested or if they penetrate the skin, may involve delayed or chronic effects, including carcinogenicity).

H 12

Eco-toxic

Substances or wastes which if released, present or may present immediate or delayed adverse impacts to the environment by means of bioaccumulation or toxic effects upon biotic systems or both.

H 13

Capable, by any means, after disposal, of yielding another material, e.g., leachate, which possesses any of the characteristics listed above.

Part D ? List of other wastes applicable for import and export without permission from Ministry of Environment, Forest and Climate Change [Annex IX of the Basel Convention*]

Basel No.

Description of wastes

(1)

(2)

B1

Metal and metal-bearing wastes

B1010

Metal and metal-alloy

wastes in metallic, non-dispersible form :

- Precious metals

(gold, silver, platinum but not mercury) * *

- Iron and steel

scrap * *

- Nickel scrap * *

- Aluminium scrap * *

- Zinc scrap * *

- Tin scrap * *

- Tungsten scrap * *

- Molybdenum scrap *

*

- Tantalum scrap * *

- Cobalt scrap * *

- Bismuth scrap * *

- Titanium scrap * *

- Zirconium scrap * *

- Manganese scrap * *

- Germanium scrap * *

- Vanadium scrap * *

- Hafnium scrap * *

- Indium scrap * *

- Niobium scrap * *

- Rhenium scrap * *

- Gallium scrap * *

- Magnesium scrap * *

- Copper scrap * *

- Chromium scrap * *

B1050

Mixed non-ferrous metal, heavy fraction scrap,
containing metals other than specified in Part B1050 and not
containing constituents mentioned in Schedule II in
concentrations sufficient to exhibit Part C characteristics* *

B1100

Metal bearing wastes

arising from melting, smelting and refining of metals:

- Hard Zinc spelter *

*

- Zinc-containing

drosses * *:

~ Galvanizing slab

zinc top dross (>90% Zn)

~ Galvanizing slab

zinc bottom dross (>92% Zn)

- ~ Zinc die casting dross (>85% Zn)
 - ~ Hot dip galvanizers slab zinc dross (batch) (>92% Zn)
 - ~ Zinc skimmings
 - Aluminium skimmings (or skims) excluding salt slag
- B1110
- Electrical and electronic assemblies (including printed circuit boards, electronic components and wires) destined for direct reuse and not for recycling or final disposal
- Used electrical and electronic assemblies imported for repair and to be re-exported back after repair within one year of import * * *
 - Used electrical and electronic assemblies imported for rental purpose and re-exported back within one year of import * * *
 - Used electrical and electronic assemblies exported for repair and to be re-import after repair
 - Used electrical and electronic assemblies imported for testing, research and development, project work purposes and to be re-exported back within a period of three years from the date of import * * *
 - Spares imported for warranty replacements provided equal number of defective or nonfunctional parts are exported back within one year of the import * * *
 - Used electrical and electronic assemblies imported by Ministry of Defence, Department of Space and Department of Atomic Energy * * *
 - Used electrical and electronic assemblies (not in bulk; quantity less than or equal to three) imported by the individuals for their personal uses
 - Used Laptop, Personal Computers, Mobile, Tablet up to 01 number each imported by organisations in a year
 - Used electrical and electronic assemblies owned by individuals and imported on transfer of residence
 - Used multifunction print and copying machines (MFDs)* * * *
 - Used electrical and electronic assemblies imported by airlines for aircraft maintenance and remaining either on board or under the custodianship of the respective airlines warehouses located on the airside of the custom bonded areas.
 - [- Used electrical and electronic assemblies imported for testing, research and development, project work purposes by the Department of Scientific and Industrial Research (DSIR) approved research and development units or units in Software Technology Parks of India (STPI), Electronic Hardware Technology Park (EHTP), Export Oriented Units (EOU) and Biotechnology Parks (BTP) with investment of Rs. 50 Crore in a Research and Development (R&D) facility***

[Inserted by Notification No. G.S.R. 544(E), dated 11.6.2018 (w.e.f. 4.4.2016)]

- Used plant and machinery having a residual life of at least 5 years for manufacturing of electrical and electronic items by the electronic industry***]

[Electrical and electronic assemblies and components manufactured in and exported from India if found defective or non-functional can be imported back by Original Equipment Manufacturers (OEMs) within twelve months from the date of export.]

[Inserted by Notification No. G.S.R. 178(E), dated 1.3.2019 (w.e.f. 4.4.2016).]

B3

Wastes containing principally organic constituents, which may contain metals and inorganic materials

B3020

Paper, paperboard and paper product wastes * *

The following materials, provided they are not mixed with hazardous wastes:

Waste and scrap of paper or paperboard of:

- unbleached paper or paperboard or of corrugated paper or paperboard
- other paper or paperboard, made mainly of bleached chemical pulp, not coloured in the mass
- paper or paperboard made mainly of mechanical pulp (for example newspapers, journals and similar printed matter)
- other, including but not limited to

(1) laminated paperboard

(2) unsorted scrap

B3140

Aircraft Tyres exported to Original Equipment

Manufacturers for re-treading and re-imported after re-treading by airlines for aircraft maintenance and remaining either on board or under the custodianship of the respective airlines warehouses located on the airside of the custom bonded areas

Note:

* This list is based on Annexure IX of the Basel Convention on Transboundary Movement of Hazardous Wastes and comprises of wastes not characterized as hazardous under Article-I of the Basel Convention.

* * Import permitted in the country to the actual user or to the trader on behalf of the actual users authorised by SPCB on one time basis and subject to verification of documents specified in Schedule VIII of these rules by the Custom Authority.

* * * Import permitted in the country only to the actual users from Original Equipment Manufacturers (OEM) and subject to verification of documents specified in Schedule VIII of these rules by the Custom Authority.

[* * * * Import permitted in the country to the actual users or trader in accordance with the documents required and verified by the Custom Authority as specified under Schedule VIII of these rules. The policy for free trade for multifunction print and copying machine to be reviewed once the MFDs are domestically manufactured.]

[Substituted by Notification No. G.S.R. 670 (E), dated 6.7.2016 (w.e.f. 4.4.2016).]

All other wastes listed in Part D of Schedule III having no "Stars" are permitted without any documents from MoEF&CC subject to compliance of the conditions of the Customs Authority, if any.

IV

[See rules 6 (1) (ii) and 6 (2)]

List of commonly recyclable hazardous wastes

S.No.

Wastes

- (1)
- (2)
 1.
Brass Dross
 2.
Copper Dross
 3.
Copper Oxide mill scale
 4.
Copper reverts, cake and residue
 5.
Waste Copper and copper alloys in dispersible form
 6.
Slags from copper processing for further processing or refining
 7.
Insulated Copper Wire Scrap or copper with PVC sheathing including ISRI-code material namely "Druid"
 8.
Jelly filled Copper cables
 9.
Spent cleared metal catalyst containing copper
 10.
Spent catalyst containing nickel, cadmium, Zinc, copper, arsenic, vanadium and cobalt
 11.
Zinc Dross-Hot dip Galvanizers SLAB
 12.
Zinc Dross-Bottom Dross
 13.
Zinc ash/Skimnings arising from galvanizing and die casting operations
 14.
Zinc ash/Skimming/other zinc bearing wastes arising from smelting and refining
 15.
Zinc ash and residues including zinc alloy residues in dispersible form
 16.
Spent cleared metal catalyst containing zinc
 17.
Used Lead acid battery including grid plates and other lead scrap/ashes/residues not covered under Batteries (Management and Handling) Rules, 2001. [Battery scrap, namely: Lead battery plates covered by ISRI, Code word "Rails" Battery lugs covered by ISRI, Code word "Rakes". Scrap drained/dry while intact, lead batteries covered by ISRI, Code word "rains".
 18.
Components of waste electrical and electronic assemblies comprising accumulators and other batteries included in

Part A of Schedule III, mercury-switches, activated glass cullets from cathode-ray tubes and other activated glass and PCB-capacitors, or any other component contaminated with Schedule II constituents (e.g. cadmium, mercury, lead, polychlorinated biphenyl) to an extent that they exhibit hazard characteristics indicated in part C of Schedule III.

19.

Paint and ink Sludge/residues

20.

Used oil and waste oil

V

[See rules 3 (36) and 3 (39)]

Part A ? Specifications of Used Oil Suitable for recycling

S.No.

Parameter

Maximum permissible Limits

(1)

(2)

(3)

1.

Polychlorinated biphenyls (PCBs)

< 2ppm *

2.

Lead

100 ppm

3.

Arsenic

5 ppm

4.

Cadmium + Chromium + Nickel

500 ppm

5.

Polyaromatic hydrocarbons (PAH)

6%

Part B ? Specification of fuel derived from waste oil

S.No.

Parameter

Maximum permissible limits

(1)

(2)

(3)

1.

Sediment

0.25%

2.

Lead

100 ppm

3.

Arsenic

5 ppm

4.

Cadmium+Chromium+Nickel

500 ppm

5.

Polyaromatic hydrocarbons (PAH)

6%

6.

Total halogens

4000 ppm

7.

Polychlorinated biphenyls (PCBs)

<2 ppm *

8.

Sulfur

4.5%

9.

Water Content

1%

*The detection limit is 2 ppm by gas Liquid Chromatography (GLC) using Electron Capture detector (ECD)

VI

[See rules 12 (6), 12 (7) and 14(1)]

Hazardous and other wastes prohibited for import

Basel No.

Description of hazardous and other wastes

(1)

(2)

A1

Metal and Metal bearing wastes

A1010

Metal wastes and waste consisting of alloys of any of the following but excluding such wastes specifically listed in Part B and Part D of Schedule III

-

Arsenic

-

Beryllium

-

Mercury

-

Selenium

-

Thallium

A1020

Wastes having as constituents or contaminants, excluding metal wastes in massive form, any of the following:

-

Beryllium; beryllium compounds

-

Selenium; selenium compounds

A1030

Wastes having as constituents or contaminants any of the following:

- Arsenic; arsenic compounds
- Mercury; mercury compounds
- Thallium; thallium compounds
- A1040
Waste having hexavalent chromium compounds as constituents
- A1140
Waste cupric chloride and copper cyanide catalysts in liquid form (note the related entry in Part A of Schedule III)
- A1060
Wastes liquors from the pickling of metals
- A1110
Spent electrolytic solutions from copper electrorefining and electrowinning operations
- A1130
Spent etching solutions containing dissolved copper
- A1180
Waste electrical and electronic assemblies or scrap (does not include scrap assemblies from electric power generation) containing components such as accumulators and other batteries included in Part A of Schedule III, mercury-switches, glass from cathode-ray tubes and other activated glass and PCBcapacitors, or contaminated with Schedule II constituents (e.g. cadmium, mercury, lead, polychlorinated biphenyl) to an extent that they exhibit hazard characteristics indicated in Part C of Schedule III (note the related entry in Part B B1110)
- A1190
Waste metal cables coated or insulated with plastics containing or contaminated with coal tar, PCB, lead, cadmium, other organohalogen compounds or other constituents as mentioned in Schedule II to the extent that they exhibit hazard characteristics indicated in Part C of Schedule III
- A2
Wastes containing principally inorganic constituents, which may contain metals and organic materials
- A2020
Waste inorganic fluorine compounds in the form of liquids or sludges but excluding such wastes specified in Part B
- A2040
Waste gypsum arising from chemical industry processes, if it contains any of the constituents mentioned in Schedule 2 to the extent that they exhibit hazard characteristics indicated in Part C of Schedule III (note the related entry in Part B B2080)
- A2050
Waste asbestos (dusts and fibres)
- A2060
Coal-fired power plant fly-ash containing Schedule II constituents in concentrations sufficient to exhibit Part C characteristics

A3

Wastes containing principally organic constituents, which may contain metals and inorganic materials

A3030

Wastes that contain, consist of or are contaminated with leaded anti-knock compounds sludges.

A3040

Waste thermal (heat transfer) fluids

A3060

Waste nitrocellulose

A3070

Waste phenols, phenol compounds including chlorophenol in the form of liquids or sludges

A3080

Waste ethers not including those specified in Part B

A3090

Waste leather dust, ash, sludges and flours when containing hexavalent chromium compounds or biocides (note the related entry in Part B B3100)

A3100

Waste paring and other waste of leather or of composition leather not suitable for the manufacture of leather articles, containing hexavalent chromium compound and biocides (note the related entry in Part B B3090)

A3110

Fellmongery wastes containing hexavalent chromium compounds or biocides or infectious substances (note the related entry in Part B B3110)

A3140

Waste non-halogenated organic solvents but excluding such wastes specified in Part B

A3150

Waste halogenated organic solvents

A3160

Waste halogenated or unhalogenated non-aqueous distillation residues arising from organic solvent recovery operations

A3170

Waste arising from the production of aliphatic halogenated hydrocarbons (such as chloromethane, dichloro-ethane, vinyl chloride, vinylidene chloride, allyl chloride and epichlorhydrin)

A3180

Wastes, substances and articles containing, consisting of or contaminated with polychlorinated biphenyl (PCB), polychlorinated terphenyl (PCT), polychlorinated naphthalene (PCN) or polybrominated biphenyl (PBB) or any other polybrominated analogues of these compounds

A3190

Waste tarry residues (excluding asphalt cements) arising from refining, distillation and any pyrolytic treatment of organic materials

A3200

Bituminous material (asphalt waste) from road construction and maintenance, containing tar (note the related entry in Part B, B2130)

A4

Wastes which may contain either inorganic or organic constituents

A4020

Clinical and related wastes; that is wastes arising from medical, nursing, dental, veterinary, or similar practices, and wastes generated in hospitals or other facilities during the investigation or treatment of patients, or research projects.

A4030

Waste from the production, formulation and use of biocide and phyto-pharmaceuticals, including waste pesticides and herbicides which are off-specification, out-dated (unused within the period recommended by the manufacturer), or unfit for their originally intended use,

A4050

Wastes that contain, consist of, or are contaminated with any of the following:

-

Inorganic cyanides, excepting precious-metal-bearing residues in solid form containing traces of inorganic cyanides.

-

Organic cyanides

A4060

Waste oils/water, hydrocarbons/water mixtures, emulsions

A4080

Wastes of an explosive nature (but excluding such wastes specified in Part B)

A4090

Waste acidic or basic solutions, other than those specified at B2120 of this Schedule

A4110

Wastes that contain, consist of or are contaminated with any of the following:

-

Any congener of polychlorinated dibenzo-furan.

-

Any congener of polychlorinated dibenzo-P-dioxin.

A4150

Waste chemical substances arising from research and development or teaching activities which are not identified and /or are new and whose effects on human health and /or the environment are not known

B1

Metal and Metal bearing wastes

B1110

Used critical care medical equipment for re-use

B1115

Waste metal cables coated or insulated with plastics, not included in A1190 of this schedule, excluding those destined for operations which do not lead to resource recovery, recycling, reclamation, direct re-use or alternative uses or any other disposal operations involving, at any stage, uncontrolled thermal processes, such as open-burning.

B1250

Waste end-of-life motor vehicles, containing neither liquids nor other hazardous components

B2

Wastes containing principally inorganic constituents, which may contain metals and organic materials

B2050

Coal-fired power plant fly-ash, note the related entry at A2060 of this Schedule

B2110

Bauxite residue (red mud) (pH moderated to less than 11.5)

B2120

Waste acidic or basic solutions with a pH greater than 2 and less than 11.5, which are not corrosive or otherwise hazardous (note the related entry at A4090 of this schedule)

B3

Wastes containing principally organic constituents, which may contain metals and inorganic materials

B3010

Solid plastic waste

The following plastic or mixed plastic waste, prepared to a specification:

-

Scrap plastic of non-halogenated polymers and co-polymers, including but not limited to the following:

Ethylene, Styrene, Polypropylene, polyethylene terephthalate, Acrylonitrile, Butadiene, Polyacetals, Polyamides, polybutylene tere-phthalate, Polycarbonates, Polyethers, polyphenylene sulphides, acrylic polymers, alkanes C10-C13 (plasticiser), polyurethane (not containing CFC's), Polysiloxanes,[polymethyl methacrylate] [Inserted by Notification No. G.S.R. 178(E), dated 1.3.2019 (w.e.f. 4.4.2016).], polyvinyl alcohol, polyvinyl butyral, Polyvinyl acetate

-

Cured waste resins or condensation products including the following: urea formaldehyde resins, phenol formaldehyde resins, melamine formaldehyde resins, epoxy resins, alkyd resins, polyamides

-

The following fluorinated polymer wastes (excluding post-consumer wastes): perfluoroethylene/ propylene, perfluoro alkoxy alkane, tetrafluoroethylene/per fluoro vinyl ether (PFA), tetrafluoroethylene/per fluoro methylvinyl ether (MFA), polyvinylfluoride , polyvinylidene fluoride

[***]

[Omitted 'Note -Import is permitted to the units in Special Economic Zones and Export Oriented Units notified by the Central Government.' by Notification No. G.S.R. 178(E), dated 1.3.2019 (w.e.f. 4.4.2016).]

B3026

The following waste from the pre-treatment of composite packaging for liquids, not containing constituents mentioned in Schedule II in concentrations sufficient to exhibit Part C characteristics:

-

Non-separable plastic fraction

-

Non-separable plastic-aluminium fraction

-

B3065

Waste edible fats and oils of animal or vegetable origin (e.g. frying oil)

B3140

Waste pneumatic tyres for direct reuse

Y 46

Wastes collected from household/municipal waste

Y 47

Residues arising from the incineration of household wastes

VII

[See rules 13 (6) and 21]

List of authorities and corresponding duties

S. No.

Authority

Corresponding Duties

(1)

(2)

(3)

1.

Ministry of Environment, Forests and Climate Change under the Environment (Protection) Act, 1986

(i)

Identification of hazardous and other wastes

(ii)

Permission to exporters of hazardous and other wastes

(iii)

Permission to importer of hazardous and other wastes

(iv)

Permission for transit of hazardous and other wastes through India.

(v)

Promote environmentally sound management of hazardous and other waste.

(vi)

Sponsoring of training and awareness programme on Hazardous and Other Waste Management related activities.

2.

Central Pollution Control Board constituted under the Water (Prevention and Control of Pollution) Act, 1974

(i)

Co-ordination of activities of State Pollution Control Boards

(ii)

Conduct training courses for authorities dealing with management of hazardous and other wastes

(iii)

Recommend standards and specifications for treatment and disposal of wastes and leachates, recommend procedures for characterisation of hazardous wastes.

(iv)

Inspection of facilities handling hazardous waste as and when necessary.

(v)

Sector specific documentation to identify waste for inclusion in these rules.

(vi)

Prepare and update guidelines to prevent or minimise the generation and handling of hazardous and other wastes.

(vii)

Prepare and update guidelines/ Standard Operating Procedures (SoPs) for recycling, utilization, preprocessing, co-processing of hazardous and other wastes.

(viii)

To prepare annual review report on management of hazardous waste.

(ix)

Any other function assigned by the Ministry of Environment, Forest and Climate Change, from time to time.

3.

State Government/Union Territory Government/Administration

(i)

Identification of site (s) for common Hazardous and Other Waste Treatment Storage and Disposal Facility (TSDF)

(ii)

Asses Environment Impact Assessment (EIA) reports and convey the decision of approval of site or otherwise Acquire the site or inform operator of facility or occupier or association of occupiers to acquire the site

(iii)

Notification of sites.

(iv)

Publish periodically an inventory of all potential or existing disposal sites in the State or Union Territory

4.

State Pollution Control Boards or Pollution Control Committees constituted under the Water (Prevention and Control of Pollution) Act, 1974

(i)

Inventorisation of hazardous and other wastes

(ii)

Grant and renewal of authorisation

(iii)

Monitoring of compliance of various provisions and conditions of permission including conditions of permission for issued by Ministry of Environment, Forest and Climate Change for exports and imports

(iv)

Examining the applications for imports submitted by the importers and forwarding the same to Ministry of Environment, Forest and Climate Change

(v)

Implementation of programmes to prevent or reduce or minimise the generation of hazardous and other wastes.

(vi)

Action against violations of these rules.

(vii)

Any other function under these Rules assigned by Ministry of Environment, Forest and Climate Change from time to time.

5.

Directorate General of Foreign Trade constituted under the Foreign Trade (Development and Regulation) Act, 1992

(i)

Grant of licence for import of hazardous and other wastes

(ii)

Refusal of licence for hazardous and other wastes prohibited for imports and export

6.

Port authority under Indian Ports Act, 1908 (15 of 1908

) and

Customs Authority under the Customs Act, 1962 (52 of 1962

)

(i)

Verify the documents

(ii)

Inform the Ministry of Environment, Forests and Climate Change of any illegal traffic

(iii)

Analyse wastes permitted for imports and exports, wherever required.

(iv)

Train officials on the provisions of these rules and in the analysis of hazardous and other wastes

(v)

Take action against exporter or importer for violations under the Indian Ports Act, 1908 or Customs Act, 1962

VIII

[See rules 13(2) and 13 (4)]

List of documents for verification by Customs for import of other wastes specified in Part D of Schedule III
S. No.

Basel No.

Description of other wastes

List of Documents

(1)

(2)

(3)

(4)

1

B1010

Metal and metal-alloy

wastes in metallic, non-dispersible form:

- Precious metals

(gold, silver, platinum)

- Iron and steel

scrap

- Nickel scrap

- Aluminium scrap

- Zinc scrap

- Tin scrap

- Tungsten scrap

- Molybdenum scrap

- Tantalum scrap

- Cobalt scrap

- Bismuth scrap

- Titanium scrap

- Zirconium scrap

- Manganese scrap

- Germanium scrap

- Vanadium scrap

- Hafnium scrap

- Indium scrap

- Niobium scrap

- Rhenium scrap

- Gallium scrap

- Magnesium scrap

- Copper scrap

- Chromium scrap

(a) Duly filled up

Form 6 - Movement document;

(b) The import

license from Directorate General of Foreign Trade, wherever applicable;

(c) Pre-shipment

inspection certificate issued by the inspection agency of the exporting country or the inspection and certification agency approved by Directorate General of Foreign Trade;

(d) The valid

consents to operate under the Air and Water Acts and the authorisation under these rules, for actual users. For traders, only valid one time authorisation from concerned SPCB is required;

(e) The chemical

analysis report of the waste being imported;
(f) an acknowledged copy of the annual return
filed with concerned State Pollution Control Board for import in
the last financial year.

2

B1050

Mixed non-ferrous metal, heavy fraction scrap,
containing metals other than specified in Part B1050 and not
containing constituents mentioned in Schedule II in
concentrations sufficient to exhibit Part C characteristics**

(a) Duly filled up

Form 6 - Movement document;

(b) The import

license from Directorate General of Foreign Trade, wherever
applicable;

(c) Pre-shipment

inspection certificate issued by the inspection agency of the
exporting country or the inspection and certification agency
approved by Directorate General of Foreign Trade;

(d) The valid

consents to operate under the Air and Water Acts and the
authorisation under these rules, for actual users. For traders,
only valid authorisation from concerned SPCB is required;

(e) The chemical

analysis report of the waste being imported;

(f) An acknowledged copy of the annual return
filed with concerned SPCB for import in the last financial year.

3

B1100

Metal bearing wastes

arising from melting, smelting and refining of metals:

- Hard Zinc spelter

- Zinc-containing

drosses:

~ Galvanizing slab

zinc top dross (>90% Zn)

~ Galvanizing slab

zinc bottom dross (>92% Zn)

~Zinc die casting

dross (>85% Zn)

~ Hot dip galvanizers

slab zinc dross (batch) (>92% Zn)

~ Zinc skimmings

? Aluminium skimmings (or skims)

(a) Duly filled up

Form 6 - Movement document;

(b) The import

license from Directorate General of Foreign Trade, wherever
applicable;

(c) Pre-shipment

inspection certificate issued by the inspection agency of the

exporting country or the inspection and certification agency
approved by Directorate General of Foreign Trade;

(d) The valid

consents to operate under the Air and Water Acts and the
authorisation under these rules, for actual users. For traders,
only valid authorisation from concerned SPCB is excluding salt
slag required;

(e) The chemical

analysis report of the waste

(f) An acknowledged copy of the annual return

filed with concerned SPCB for import in the last financial year.

4

B1110

Electrical and electronic assemblies (including
printed circuit boards, electronic components and wires) destined
for direct reuse and not for recycling or final disposal

(a)

Used electrical and electronic assemblies

imported for repair and to be re-exported after repair within one
year of import

(a) Duly filled up

Form 6 - Movement document;

(b) Undertaking for

re-export;

(c) Details of

previous import, if there has been any and confirmation regarding
their re-export;

(d) An acknowledged

copy of the annual return filed with concerned SPCB for import in
the last financial year

(e) Certificate from exporting company for

accepting the repaired and unrepairable electrical and electronic
assemblies and the spares or part or component or consumables
being re-exported.

(b)

Used electrical and electronic assemblies

imported for rental purpose and re-exported back within one year
of import

(a) Duly filled up

Form 6 - Movement document;

(b) Undertaking for

re-export;

(c) Details of

previous import, if there has been any and confirmation regarding
their re-export;

(d) An acknowledged copy of the annual return

filed with concerned SPCB for import in the last financial year

(c)

Used electrical and electronic assemblies

exported for repair and to be re-imported after repair

(a) Duly filled up

Form 6 - Movement document;

(b) Proof of export of the defective electrical and electronic assemblies i.e. shipping or airway document authenticated by Customs

(d)

Used electrical and electronic assemblies imported for testing, research and development, project work purposes and to be re-exported back within a period of three years from the date of import

(a) Duly filled up

Form 6 - Movement document;

(b) Undertaking for

re-export;

(c) Details of

previous import, if there has been any and confirmation regarding their re-export;

(d) Chartered

Engineer Certificate or certificate from accredited agency of exporting country indicating the functionality, manufacturing date, residual life and serial number;

(e) an acknowledged

copy of the annual return filed with concerned SPCB for import in the last financial year;

(f) Certificate from exporting company for accepting the second hand functional or nonfunctional electrical and electronic assemblies and/or the spares or part or component or consumables being re-exported at the end of three years.

[d(i)]

[Inserted by Notification No. G.S.R. 544(E), dated 11.6.2018 (w.e.f. 4.4.2016)]

Used electrical and electronic assemblies

imported for testing, research and development, project work purposes by the Department of Scientific and Industrial Research (DSIR) approved research and development units or units in Software Technology Parks of India (STPI), Electronic Hardware Technology Park (EHTP), Export Oriented Units (EOU) and Biotechnology Parks (BTP) with investment of Rs. 50 Crore in a Research and Development (R&D) facility.

(a) Duly filled up

Form 6 ? Movement document;

(b) Details of

previous import, if any.

(c) Chartered

Engineer Certificate or certificate from accredited agency of exporting country indicating the functionality, manufacturing date, residual life and serial number;

(d) An acknowledged

copy of the annual return filed with concerned State Pollution Control Board for import in the last financial year.

(e) A certificate of investment of Rs. 50 crores or above in Research and Development (R&D) facility

d(ii)

Used plant and machinery having a residual life of at least 5 years for manufacturing of electrical and electronic items by the electronic industry.

(a) Duly filled up

Form 6 ? Movement document;

(b) Details of

previous import, if any.

(c) Chartered

Engineer Certificate or certificate from accredited agency of exporting country indicating the functionality, manufacturing date, residual life and serial number;

(d) An acknowledged copy of the annual return

filed with concerned State Pollution Control Board for import in the last financial year.]

(e)

Spares imported for warranty replacements

provided equal number of defective / nonfunctional parts are exported back within one year of the import.

(a) Duly filled up

Form 6 - Movement document;

(b) if refurbished

components being imported as replacement to defective component then undertaking for export of equivalent numbers of defective components;

(c) Details of

previous import, if there has been any and confirmation regarding their re-export;

(d) Certificate from

exporting company for accepting the re-export of defective or nonfunctional spares or part or component or consumables being re-exported;

(e) Documents on the declared policy regarding

the use of second hand or refurbished spare parts for repair of electrical and electronic assemblies during warranty period.

(f)

Used electrical and electronic assemblies

imported by Ministry of Defence, Department of Space and Department of Atomic Energy.

(g)

Used electrical and electronic assemblies (not

in bulk; quantity less than or equal to three) imported by the individuals for their personal uses.

(h)

Used Laptop, Personal Computers, Mobile, Tablet

up to 03 number each imported by organisations in a year.

(i)

Used electrical and electronic assemblies owned

by individuals and imported on transfer of residence.

As per existing guidelines of Custom Authority

(i)

Used electrical and electronic assemblies, spares, imported by airlines for aircraft maintenance and remaining either on board or under the custodianship of the respective airlines warehouses located on the airside of the custom bonded areas.

(j)

Used multifunction print and copying machines (MFDs)*

(a) The country of

Origin Certificate along with bill of lading and packaging;

(b) The certificate

issued by the inspection agency as certified by the exporting country or the inspection and certification agency approved by Directorate General Foreign Trade (DGFT) for functionality, having residual life of not less than five years and serial number;

(c) Extended Producer

Responsibility- Authorisation under e-waste (Management and Handling) Rules, 2011 as amended from time to time as Producer;

(d) The MFDs shall be

for printing A 3 size and above;

(e) An acknowledged copy of the annual return

filed with concerned SPCB for import in the last financial year.

5

B3020

Paper, paperboard and

paper product wastes The following materials, provided they are not mixed with hazardous wastes:

Waste and scrap of

paper or paperboard of:

- unbleached paper or

paperboard or of corrugated paper or paperboard

- other paper or paperboard, made mainly of

bleached chemical pulp, not coloured in the mass

(a) Duly filled up

Form 6 ? Movement document;

(b) The import

license from Directorate General of Foreign Trade, wherever applicable;

(c) Pre-shipment

inspection certificate issued by the inspection agency of the exporting country or the inspection and certification agency approved by Directorate General of Foreign Trade;

(d) The valid consents to operate under the Air

and Water Acts and the authorisation under these rules, for actual users. For traders, only valid authorisation from

concerned SPCB is required;

- paper or paperboard

made mainly of mechanical pulp (for example newspapers, journals and similar printed matter)

- other, including but not limited to (1)

laminated paperboard (2) unsorted scrap

(f) an acknowledged copy of the annual return

filed with concerned State Pollution Control Board for import in the last financial year.

6.

B3140

Aircraft Tyres exported to Original Equipment

Manufacturers for re-treading and re-imported after re-treading

by airlines for aircraft maintenance and remaining either on

board or under the custodianship of the respective airlines

warehouses located on the airside of the custom bonded areas

As per existing guidelines of Custom Authority

Note: * The policy for free trade for multifunction print and copying machine to be reviewed once the MFDs are domestically manufactured.

Form 1

[See rule 6 (1)]

Application required for grant/renewal of authorisation for generation or collection or storage or transport or reception or recycling or reuse or recovery or pre-processing or co-processing or utilisation or treatment or disposal of hazardous and other waste

Part A ? General (to be filled by all)

1. (a) Name and address of the unit and location of facility :

(b)

Name of the occupier of the facility or operator of disposal facility with designation, Tel, Fax and e-mail:

(c)

Authorisation required for (Please tick mark appropriate activity or activities:

(i)

Generation

{

|

(ii)

| Collection

{

|

|

}

|

(iii)

| Storage

{

|

|

}

|

(iv)

| Transportation

{

|

|

}
|-
| (v)
| Reception
{
}
-
(vi)
Reuse
{
-
}
-
(vii)
Recycling
{
-
}
-
(viii)
Recovery
{
-
}
-
(ix)
Pre-processing
{
-
}
-
(x)
Co-processing
{
-
}
-
(xi)
Utilisation
{
-
}
-

| (xii)
| Treatment

| {

|-

|

|}

|-

| (xiii)

| Disposal

| {

|-

|

|}

|-

| (xiv)

| Incineration

| {

|-

|

|}

|}

(d)

In case of renewal of authorisation previous authorisation numbers and dates and provide copies of annual returns of last three years including the compliance reports with respect to the conditions of Prior Environmental Clearance, wherever applicable:

2. (a) Nature and quantity of waste handled per annum (in metric tonne or kilo litre)

(b)

Nature and quantity of waste stored at any time (in metric tonne or kilo litre)

3. (a) Year of commissioning and commencement of production:

(b)

Whether the industry works:

(i)

01 Shift

{

|-

| (ii)

| 02 Shifts

| {

|-

|

|}

|-

| (iii)

| Round the clock

| {

|-

|

|}

|}

4. Provide copy of the Emergency Response Plan (ERP) which should address procedures for dealing with emergency situations (viz. Spillage or release or fire) as specified in the guidelines of Central Pollution Control Board. Such ERP

shall comprise the following, but not limited to:

- Containing and controlling incidents so as to minimise the effects and to limit danger to the persons, environment and property;
- Implementing the measures necessary to protect persons and the environment;
- Description of the actions which should be taken to control the conditions at events and to limit their consequences, including a description of the safety equipment and resources available;
- Arrangements for training staff in the duties which they are expected to perform;
- Arrangements for informing concerned authorities and emergency services; and
- Arrangements for providing assistance with off-site mitigatory action.

5. Provide undertaking or declaration to comply with all provisions including the scope of submitting bank guarantee in the event of spillage, leakage or fire while handling the hazardous and other waste.

Part B ? To be filled by hazardous waste generators

1. (a) Products and by-products manufactured (names and product wise quantity per annum):

(b)

Process description including process flow sheet indicating inputs and outputs (raw materials, chemicals, products, by-products, wastes, emissions, waste water etc.) Please attach separate sheets:

(c)

Characteristics (waste-wise) and Quantity of waste generation per annum:

(d)

Mode of management of (c) above:

i. Capacity and mode of secured storage within the plant;

ii. Utilisation within the plant (provide details);

iii. If not utilised within the plant, please provide details of what is done with this waste;

iv. Arrangement for transportation to actual users/ TSDF;

(e)

Details of the environmental safeguards and environmental facilities provided for safe handling of all the wastes at point (c) above;

2. Hazardous and other wastes generated as per these rules from storage of hazardous chemicals as defined under the Manufacture, Storage and Import of Hazardous Chemicals Rules, 1989.

Part C ? To be filled by Treatment, storage and disposal facility operators

1. Provide details of the facility including:

(i)

Location of site with layout map;

(ii)

Safe storage of the waste and storage capacity;

(iii)

The treatment processes and their capacities;

(iv)

Secured landfills;

(v)

Incineration, if any;

(vi)

Leachate collection and treatment system;

(vii)

Fire fighting systems;

(viii)

Environmental management plan including monitoring; and

(ix)

Arrangement for transportation of waste from generators.

2. Provide details of any other activities undertaken at the Treatment, storage and disposal facility site.

3. Attach a copy of prior Environmental Clearance.

[Part D: To be filled by recyclers or pre-processors or co-processors or waste collectors or users of hazardous and other wastes]

[Substituted by Notification No. G.S.R. 178(E), dated 1.3.2019 (w.e.f. 4.4.2016).]

1. Nature and quantity of different wastes received per annum from domestic sources or imported or both:
2. Installed capacity as per registration issued by the District Industries Centre or any other authorised Government agency. Provide copy:
3. Provide details of secured storage of wastes including the storage capacity:
4. Process description including process flow sheet indicating equipment details, inputs and outputs (input wastes, chemicals, products, by-products, waste generated, emissions, waste water, etc.). Attach separate sheets:
5. Provide details of end users of products or by-products:
6. Provide details of pollution control systems such as Effluent Treatment Plant, scrubbers, etc. including mode of disposal of waste:
7. Provide details of occupational health and safety measures:
8. Has the facility been set up as per Central Pollution Control Board guidelines? If yes, provide a report on the compliance with the guidelines:
9. Arrangements for transportation of waste to the facility:

Signature of the Applicant

Designation

Date.....

Place.....

Form 2

[See rule 6(2)]

Form for grant or Renewal of Authorisation by State Pollution Control Board to the Occupiers, Recyclers, Reprocessors, Reusers, User and Operators of Disposal Facilities

1. Number of authorisation and date of issue :
2. Reference of application (No. and date) :
3.of is hereby granted an authorisation based on the enclosed signed inspection report for generation, collection, reception, storage, transport, reuse, recycling, recovery, preprocessing, co-processing, utilisation, treatment, disposal or any other use of hazardous or other wastes or both on the premises situated at.....

Details of Authorisation

Sl. No.

Category of Hazardous Waste as per the Schedules I, II and III of these rules

Authorised mode of disposal or recycling or utilisation or coprocessing, etc.

Quantity (ton/annum)

(1)

The authorisation shall be valid for a period of

(2)

The authorisation is subject to the following general and specific conditions (Please specify any conditions that need to be imposed over and above general conditions, if any):

A. General conditions of authorisation:

1. The authorised person shall comply with the provisions of the Environment (Protection) Act, 1986, and the rules made there under.
2. The authorisation or its renewal shall be produced for inspection at the request of an officer authorised by the State Pollution Control Board.
3. The person authorised shall not rent, lend, sell, transfer or otherwise transport the hazardous and other wastes except what is permitted through this authorisation.
4. Any unauthorised change in personnel, equipment or working conditions as mentioned in the application by the person authorised shall constitute a breach of his authorisation.
5. The person authorised shall implement Emergency Response Procedure (ERP) for which this authorisation is being

granted considering all site specific possible scenarios such as spillages, leakages, fire etc. and their possible impacts and also carry out mock drill in this regard at regular interval of time;

6. The person authorised shall comply with the provisions outlined in the Central Pollution Control Board guidelines on "Implementing Liabilities for Environmental Damages due to Handling and Disposal of Hazardous Waste and Penalty"

7. It is the duty of the authorised person to take prior permission of the State Pollution Control Board to close down the facility.

8. The imported hazardous and other wastes shall be fully insured for transit as well as for any accidental occurrence and its clean-up operation.

9. The record of consumption and fate of the imported hazardous and other wastes shall be maintained.

10. The hazardous and other waste which gets generated during recycling or reuse or recovery or pre-processing or utilisation of imported hazardous or other wastes shall be treated and disposed of as per specific conditions of authorisation.

11. The importer or exporter shall bear the cost of import or export and mitigation of damages if any.

12. An application for the renewal of an authorisation shall be made as laid down under these Rules.

13. Any other conditions for compliance as per the Guidelines issued by the Ministry of Environment, Forest and Climate Change or Central Pollution Control Board from time to time.

14. Annual return shall be filed by June 30th for the period ensuring 31st March of the year.

B. Specific conditions:

Date:

Signature of Issuing

Authority

Designation and

Seal

Form 3

[See rules 6(5), 13(7), 14(6), 16(5) and 20 (1)]

Format for Maintaining Records of Hazardous and other Wastes

1. Name and address of the facility :

2. Date of issuance of authorisation and its reference number :

3. Description of hazardous and other wastes handled (Generated or Received)

Date

Type of waste with category as per Schedules I, II and III

of these rules

Total quantity (Metric Tonnes)

Method of Storage

Destined to or received from

* Fill up above table separately for indigenous and imported waste.

5. Date of environmental monitoring (as per authorisation or guidelines of Central Pollution Control Board):

Signature of occupier

Date.....

Place.....

Form 4

[See rules 6(5), 13(8), 16(6) and 20 (2)]

Form for Filing Annual Returns

[To be submitted to State Pollution Control Board by 30th day of June of every year for the preceding period April to March]

1. Name and address of facility:

2. Authorisation No. and Date of issue:

3. Name of the authorised person and full address with telephone, fax number and e-mail:

4. Production during the year (product wise), wherever applicable

Part A ? . To be filled by hazardous waste generators

1. Total quantity of waste generated category wise

2. Quantity dispatched

(i)

to disposal facility

(ii)

to recycler or co-processors or pre-processor

(iii)

others

3. Quantity utilised in-house, if any -

4. Quantity in storage at the end of the year -

Part B ? . To be filled by Treatment, storage and disposal facility operators

1. Total quantity received -

2. Quantity in stock at the beginning of the year -

3. Quantity treated -

4. Quantity disposed in landfills as such and after treatment -

5. Quantity incinerated (if applicable) -

6. Quantity processed other than specified above -

7. Quantity in storage at the end of the year -

Part C ? . To be filled by recyclers or co-processors or other users

1. Quantity of waste received during the year -

(i)

domestic sources

(ii)

imported (if applicable)

2. Quantity in stock at the beginning of the year -

3. Quantity recycled or co-processed or used -

4. Quantity of products dispatched (wherever applicable) -

5. Quantity of waste generated -

6. Quantity of waste disposed -

7. Quantity re-exported (wherever applicable)-

8. Quantity in storage at the end of the year -

Signature of the Occupier or

Operator of the disposal facility

Date.....

Place.....

Form 5

[See rules 13 (1) and 14 (1)]

Application for Import or Export of Hazardous and other Waste for reuse or Recycling or Recovery or Co-Processing or Utilisation

To be Filled in by Applicant

S. No.

Description

Details to be furnished by the importer or exporter

(1)

(2)

(3)

1.

Importer or Exporter (name and address) in India

Contact person

Tel, fax and e-mail

Facility location/address

Reason for import or export

2.

Importer or exporter (name and address) outside of India

3.

Details of waste to be imported or exported

(a)

Quantity

(b)

Basel No.

(c)

Single/multiple movement

(d)

Chemical composition of waste (attach details), where applicable

(e)

Physical characteristics

(f)

Special handling requirements, if applicable

4.

For Schedule III A hazardous waste whether Prior Informed Consent has been obtained

5.

For importer

(a)

Process details along with environmental safeguard measures (attach separate sheet)

(b)

Capacity of recycling or co-processing or recovery or utilization

Enclose a copy each of valid authorisation and valid consent to operate from SPCB

6.

Details of import against the Ministry of Environment, Forest and Climate Change permission in the previous three years

7.

Port of entry

9. Undertaking :

I hereby solemnly undertake that:

(i)

The information is complete and correct to the best of my knowledge and legally-enforceable written contractual obligations have been entered into and that my applicable insurance or other financial guarantees are or shall be in force covering the transboundary movement.

(ii)

The waste permitted shall be fully insured for transit as well as for any accidental occurrence and its clean-up operation.

(iii)

The record of consumption and fate of the imported waste shall be recorded and report sent to the SPCB every quarter.

(iv)

The hazardous or other waste which gets generated in our premises by the use of imported hazardous or other wastes in the form of raw material shall be treated and disposed of as per conditions of authorisation.

(v)

I agree to bear the cost of export and mitigation of damages if any.

(vi)

I am aware that there are significant penalties for submitting a false certificate/ undertaking/ disobedience of the rules and lawful orders including the possibility of fine and imprisonment.

(vii)

The exported wastes shall be taken back, if it is not acceptable to the importer.

Signature of the Applicant

Designation

Date.....

Place.....

Form - 6

[See rules 13(2), 13 (10) and 14 (5)]

Transboundary Movement - Movement Document

S.No

Description

Details to be furnished by the exporter or importer

(1)

(2)

(3)

1

Exporter (Name and Address)

Contact Person

Tele, Fax and email

:

:

:

2.

Generator(s) of the waste (Name and Address)¹

Contact Person

Tele, Fax and email

:

:

:

Site of generation

:

3.

Importer or Actual user (Name and Address)

Contact person

Tele, Fax and email

:

:

:

4.

Trader (Name and Address)

Contact person

Tele, Fax and email

:

:

:

Details of actual user (Name, Address, Telephone and email)

:

5.

Corresponding to applicant Ref. No., If any

:

6.

Bill of lading (attach copy)

:

7.

Country of import/export

:

8.

General description of waste

:

(a)

Quantity

(b)

Physical characteristics

(c)

Chemical composition of waste (attach details), where applicable

(d)

Basel No.

(e)

UN Shipping name

(f)

UN Class

(g)

UN No

(h)

H Number

(i)

Y Number

(j)

ITC (HS)

(k)

Customs Code (H.S.)

(l)

Other (specify)

9.

Type of packages

:

Number

:

10.

Special handling requirements including emergency provision in case of accidents

:

11.

Movement subject to single/multiple consignment

In case of multiple movement-

(a)

Expected dates of each shipment or expected frequency of the shipments

:

(b)

Estimated total quantity and quantities for each individual shipment

:

12.

Transporter of waste (Name and Address)¹

:

Contact Person

Tele, Fax and email

Registration number

:

Means of transport (road, rail, inland waterway, sea, air)²

:

Date of Transfer

:

Signature of Carrier's representative

:

13.

Exporter's declaration for hazardous and other waste

:

I certify that the information in

Sl. Nos. 1 to 12 above are complete and correct to my best knowledge. I also certify that legally-enforceable written contractual obligations have been entered into and are in force covering the transboundary movement regulations/rules.

Date:.....

Signature:.....

Name:.....

To be Completed by Importer (Actual user or Trader)

14.

Shipment received by importer/ actual user/trader² / ³

Quantity

received.....Kg/litres

Date:

Name:

Signature:

15.

Methods of recovery

R code*

Technology employed (Attached details if necessary)

16.

I certify that nothing other than

declared goods covered as per these rules is intended to be imported in the above referred consignment and will be recycled /utilized.

Signature:

Date:

17.

Specific Conditions on Consenting to the Movement if applicable.

(attach details)

Notes:- (1) Attach list, if more than one; (2) Select appropriate option; (3) Immediately contact competent authority in case of any emergency; (4) If more than one transporter carriers, attach information as required in SL. No. 12.

List of abbreviations used in the Movement Document

Recovery Operations (*)

R1 Use as a fuel (other than in direct incineration) or other means to generate energy.

R2 Solvent reclamation/regeneration.

R3 Recycling/reclamation of organic substances which are not used as solvents.

R4 Recycling/reclamation of metals and metal compounds.

R5 Recycling/reclamation of other inorganic materials.

R6 Regeneration of acids or bases.

R7 Recovery of components used for pollution abatement.

R8 Recovery of components from catalysts.

R9 Used oil re-refining or other reuses of previously used oil.

R10 Land treatment resulting in benefit to agriculture or ecological improvement

R11 Uses of residual materials obtained from any of the operations numbered R 1 to R 10

Date:

Signature:

Place:

Designation:

Form 7

[See rule 13 (2) (c)]

Application form for one Time Authorisation of Traders for Part- D of Schedule III, Waste

[To be submitted by trader to the State Pollution Control Board]

1.

Name and address of trader with Telephone, Fax Number and e-mail

:

2.

TIN/VAT Number/Import/ Export Code

:

3.

Description and quantity of other waste to be imported

:

4.

Details of storage, if any

:

5.

Names and address of authorised actual user (s)

:

Signature of the authorised person

Date:

Place:

Form 8

[See rules 17 (1) and 18 (2)]

Labelling of Containers of Hazardous and Other Waste

Handle with care

Waste category and characteristics as per Part C of Schedules

II and III of these rules

Incompatible wastes and substances

Total quantity

Date of storage

Physical State of the waste (Solid/Semi-solid/Liquid):

Sender's name and address

Receiver's name and address

Phone.....

Phone.....

E-mail.....

E-mail.....

Tel. and Fax No.....

Tel. and Fax No.....

Contact person.....

Contact person.....

In case of emergency please Contact

Note:

1. Background colour of label - fluorescent yellow.

2. The word, 'Hazardous Wastes' and 'Handle With Care' to be prominent and written in red, in Hindi, English and in vernacular language.

3. The word 'Other Wastes' to be written prominently in orange, in Hindi, English and in vernacular language.

4. Label should be of non-washable material and weather proof.

Form 9

[See rule 18 (2)]

Transport Emergency (Trem) Card

[To be carried by the transporter during transportation of hazardous and other wastes, provided by the sender of waste]

1. Characteristics of hazardous and other wastes:

S. No.

Type of waste

Physical properties/

Chemical constituents

Exposure hazards

First Aid requirements

2. Procedure to be followed in case of fire :

3. Procedure to be followed in case of spillage/accident/explosion :

4. For expert services, please contact :

(i)

Name and Address

(ii)

Telephone No. :

(Name, contact number and signature of sender)

Date.....

Place.....

Form 10

[See rule 19 (1)]

Manifest for Hazardous and other Waste

1.

Sender's name and mailing address

(including Phone No. and e-mail) :

2.

Sender's authorisation No.:

3.

Manifest Document No.:

4.

Transporter's name and address:
(including Phone No. and e-mail)

5.

Type of vehicle:
(Truck/Tanker/Special Vehicle)

6.

Transporter's registration No.:

7.

Vehicle registration No.:

8.

Receiver's name and mailing
address
(including Phone No. and e-mail):

9.

Receiver's authorisation No.:

10.

Waste description:

11.

Total quantity:

No. of Containers:

..... m3or MT

..... Nos.

12.

Physical form:
(Solid/Semi- Solid/Sludge/Oily/Tarry/Slurry/Liquid)

13.

Special handling instructions and additional information :

14.

Sender's Certificate

I hereby declare that the contents of the
consignment are fully and accurately described above by proper
shipping name and are categorised, packed, marked, and labelled,
and are in all respects in proper conditions for transport by
road according to applicable national government regulations.

Name and stamp:	Signature:	Month	Day	Year
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{|

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| 15.

| Transporter acknowledgement of receipt of Wastes

|

|-

Name and stamp:	Signature:	Month	Day	Year
-----------------	------------	-------	-----	------

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| {|

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[See rule 22]

Format For Reporting Accident

[To be submitted by the facility or sender or receiver or transporter to the State Pollution Control Board]

1.

The date and time of the accident

:

2.

Sequence of events leading to accident

•

3.

Details of hazardous and other wastes involved in accident

•

4.

The date for assessing the effects of the accident on health or the environment

•

5.
The emergency measures taken
:
6.
The steps taken to alleviate the effects of accidents
:
7.
The steps take to prevent the recurrence of such an accident
:
Date:
Signature:
Place:
Designation:
Form 12
[See rule 24 (1)]
Application for filing Appeal against the Order passed by State Pollution Control Board
1.
Name and address of the person making the appeal
:
2.
Number, date of order and address of the authority which passed the order, against which appeal is being made
: (certified copy of the order be attached)
3.
Ground on which the appeal is being made
:
4.
Relief sought for
:
5.
List of enclosures other than the order referred in point 2 against which the appeal is being filed.
:
Signature
Name and address
Date:
Related AI tags, queries and research notes
Translation